Maharashtra Fisheries Development Corporation Limited

Govt. of Maharashtra Undertaking

B-1

TENDER DOCUMENT

E-Tendering System

FOR THE WORK OF

Name of Work: - Dredging of Navigational Channel for Fishermen at Theronda Tal-Alibag District-Raigad

Tender Amount: - Rs. 1,91,22,004/-

https://mahatenders.gov.in

Executive Engineer,
Maharashtra Fisheries Development Co. Ltd. Mumbai.

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1. **GENERAL INFORMATION OF CONTRACT MAHARASHTRA FISHERIES DEVELOPMENT CORPORATION LIMITED**

ORIGINAL AGREEMENT NO. - B-1 / **……..**

Name of work: Dredging Of Navigational Channel For Fishermen At Theronda Tal-Alibag District-Raigad

1)	Name of Contractor	:	
2)	Date of receipt of tender	:	_____
3)	No. & Date of work order	:	
4)	Amount put to tender	:	**Rs. 1,91,22,004/-**
5)	Percentage quoted	:	
6)	Amount of Contract	:	
7)	Date of commencement	:	
8)	Time stipulated for completion of work	:	**2 (Two) Calendar months**
9)	Date of completion as per Agreement	:	
10)	Actual date of completion	:	
11)	Reference to sanction of extension of time.	:	1) …… 2) ……..

TO BE FILLED BY THE CONTRACTOR

I / We have quoted my/ our offer in percentage rate in words as well as in figures. I / We further under take to enter into contract in regular "B-1" form in Maharashtra Fisheries Development Corporation Limited.

Name and Signature of Contractor : ……

Power of Attorney holder : ……

With complete address : ……
……
……
……
……

2. *BRIEF TENDER NOTICE*

2.1. E-Tender notice

Online Tenders (e-tender) in B-1 form for the following work are invited by Maharashtra Fisheries Development Corporation Limited, Mumbai on Government of Maharashtra Electronic Tender Management System portal **https://mahatenders.gov.in** as per Tender Schedule Published on the web portal. The details can be viewed online and downloaded directly from the Government of Maharashtra e- Tendering Portal **https://mahatenders.gov.in**

NOTICE DETAILS

Tender Reference no. (Original Agreement No.)	
Name of Work	**Dredging Of Navigational Channel For Fishermen At Theronda Tal-Alibag District-Raigad**
Cost of blank tender document & Mode of Payment	**Rs. 1,180/- (Rs. One Thousand One Hundred Eighty Only)** (Non- Refundable) to be paid shall be in the form of online through payment gateway
EMD Amount & Mode of Payment	**Rs. 1,50,000/- (Rupees One Lakh Fifty Thousand Only)** in the form ofonline through payment gateway.
Venue of online opening oftender	Office of the Managing Director, Maharashtra Fisheries Development Corporation Limited, Mumbai
Address for Communication	Maharashtra Fisheries Development Corporation Limited, 3rd Floor, NKM International House, Behind LIC (Yogakshem) Bldg., Babubhai M. Chinoy Marg, Mumbai - 400 020
Email ID for e-Tendering Helpline Support	support-eproc@nic.in
e-Tendering Helpline Support:	24X7 Toll free telephonic help desk number :- 0120 - 4001 002 0120 - 4001 005 0120 – 4493 395

The Managing Director, Maharashtra Fisheries Development Corporation Limited, Mumbai may accept or reject any or all tenders, at any stage of tender procedure without assigning any reason.

Date:
Place: Mumbai

2.2. ***E-TENDER TIME SCHEDULE*** *[As per e-Tender GR. Dated on 28/06/2024)*

Please Note: All bid related activities (Process) will be governed by the time schedule given under Key Dates below:

Sr. No.	Activities	Date		Hour	Mins
1	Publishing Date	____/____/_____	At	10	00
2	Document Download start Date	____/____/_____	At	14	00
3	Document Download End Date	____/____/_____	Upto	17	00
4	Bid Submission Start Date	____/____/_____	At	16	00
5	Bid Submission closing Date	____/____/_____	Upto	17	00
6	Pre Bid Meeting	____/____/_____	12:00		
7	Bid Opening Date	____/____/_____	At	12	00

**Dates mentioned here, are scheduled dates for Bid Opening Activities. Any changes in dates of opening of technical and commercial tenders shall be notified in 'Press Notice / Corrigendum' section on the e-Tendering sub portal of the department before opening of the same.*

Note:-

1. All eligible/interested Bidders are required to be enrolled on portal **https://mahatenders.gov.in** to participate in e-tendering.
2. Bidders should submit the document related to tender, earnest money and tender document fee under their digital signature online through payment gateway on the e tendering portal.
3. Other instructions can be seen in the tender form. All or any one of the tender may be rejected by competent authority without assigning any reason.

3. DETAILED TENDER NOTICE

Online Tenders (e-tender) in B-1 form for the following work are invited by Maharashtra Fisheries Development Corporation Limited, Mumbai on Government of Maharashtra Electronic Tender Management System portal **https://mahatenders.gov.in** as per Tender Schedule Published on the web portal.

Sr. No.	Name of work	Estimated Cost in Rupees	Cost of Blank Tender Form in Rupees	Earnest Money inRupees	Security Deposit in Rupees	Time limit in Calendar Months
1	Dredging Of Navigational Channel For Fishermen At Theronda Tal-Alibag District-Raigad	Rs. 1,91,22,004/-	Rs. 1,180/-	Rs. 1,50,000/-	Rs. 1,91,000/-	12 (Twelve) Months including monsoon period

For more details about the tender and tendering process the bidders may please visit the above mentioned portal.

1) To participate in e-tendering, all eligible/interested contractors are mandated to get enrolled on e-Tendering portal
2) To participate in the e tendering, bidders are required to obtain digital Signature certificate.
3) Bidders can contact the help line numbers mentioned on the website for any clarification of theirdoubts regarding process of Electronic Tendering System.
4) Right to amend in any of the terms and conditions of the tender as well as Right to reject any OR all tenders without assigning any reason there for is reserved by the competent authority.

3.1. TENDERING PROCEDURE

3.1.1. Blank Tender Forms

Blank Tender Forms can be downloaded from the **https://mahatenders.gov.in** as stipulated in the Tender Notice.

3.1.2. Contents of tenders for documents

A set of tender documents issued for the purpose of tendering shall comprise the following

Sr. No.	Particulars
1	General Information of Contract
2	Brief tender notice
3	Detailed Tender Notice
4	Qualification criteria
5	Agreement Form B-1
6	Memorandum
7	General conditions of contract
8	Special Conditions of Contract
9	Additional Specifications
10	Material handling
11	Reinforcement storage and handling
12	Quality Assurance and Maintenance.
13	Price Variation Clause.
14	Schedule "A".
15	Additional Conditions for material to be brought by Contractor
16	Declaration of contractor
17	Schedule "B" & C
18	Drawings
19	Contract data

3.2. MANNER OF PREPARATION & SUBMISSION OF TENDER AND ITS ACCOMPANIMENTS

Both the Tenders (Technical as well as Commercial) shall have to be prepared and subsequently submitted online only. ***Tenders not submitted online will not be entertained****. The tenderer shall submit the tender and documents in two digitally sealed Bids as below:*

3.2.1. TECHNICAL OFFER (FOR TECHNICAL BID - DOCUMENTS)

The Technical Bid shall contain the following documents: -

3.2.1.1. The Scan copy of original copy of **Valid GST registration certificate** from Goods and Service Tax department along with **PAN**.

3.2.1.2. **Tender fee and EMD is paid online shall be scanned & uploaded.**

3.2.1.3. ~~Scanned from original copy of **Professional Tax Registration Certificate** in the form of **PTR and PTEC** both. Professional Tax Clearance Certificate of PTEC and PTR both or Challan paid upto dt. **31/03/2025 PTEC and PTR both**.~~

3.2.1.4. The scan copy of details of Work Done in **all classes of Works** during last Five years with the value of unfinished work (Information to be given in **Form No.2**,(Page No.87) and should be supported by **Work Done certificate signed by the Authority** with whom the contractor has executed the work.

3.2.1.5. The scan copy of details of **similar type of work** (Information to be given in proforma of **Form No.4,** Page No. 89) and should be supported by **work done certificate signed by the Authority** with whom the contractor has executed the work.

3.2.1.6. ~~**List of Litigation/ Arbitration history** during last 5 years. The bidder must submit NIL litigation certificate(s) in case of no litigation. (Pg. No. 118)~~

3.2.1.7. ~~The Bidder must submit a declaration stating that he is **not debarred / blacklisted / prevented from**~~

~~**participating in any tender/ bidding procedure by any govt. agency in India.** (Pg. No. 117)~~

3.2.1.8. ~~All Contractors/Bidders who are willing to bid shall submit an attested copy of a Solvency Certificate of a **minimum value of ₹1.5 crore** along with the Technical Bid. The Solvency Certificate shall be issued by a **Nationalized Bank or Scheduled Bank and shall remain valid for one year,** and only certificates valid within this period shall be considered for the tender process**. The tender of any Contractor/Bidder shall not be opened if the required Solvency Certificate is not submitted**~~

3.2.1.9. ~~Site photographs with **GPS Tagging are mandatory, photographs with MFDC Engineer, GPS Tagging should be submitted signed by Executive Engineer otherwise bid will be rejected**. Site Visit Report & GPS Tagging should be compulsory. (Pg. No. 120)~~

3.2.1.10. Scanned from original copy of Affidavit regarding **completeness, correctness and truthfulness of documents submitted on Rs. 500/- stamp paper as per prescribed proforma given in Annexure III. Sworn before Executive Magistrate/Notary.** (Pg. No. 90)

3.2.1.11. Scanned from original copy of Registration of Firm, Partnership Deed and Power of Attorney, in case of a firm tendering for work. The Registered power of attorney shall be submitted in the name of person who is submitting the bid.

3.2.1.12. ~~The contractor shall not be entitled to claim any compensation/interest from Government/MFDC on account of **delay in payment of R.A. Bills/ Final bill due to paucity of funds**. The contractor shall submit the **undertaking in this regard in the format given ANNEXURE – IV on Rs. 500/- Stamp Paper**. (Pg. No. 119)~~

3.2.1.13. The Bidder must furnish originals of all scanned documents submitted by them for verification on demand by MFDC officials.

3.2.1.14. The bidders shall categorically provide their **Email-ID** in packet 'A'.

NOTE:

i. If the tenderer(s) withdraw tender offer during the tender validity period, his entire E.M.D shall be forfeited.

ii. Only original document scans shall be uploaded, and they may be cross checked against original during scrutiny. Bidder shall present his original documents for checking to the Engineer in-charge of tender scrutiny as and when directed.

iii. If it is found that the tenderer has not submitted required documents in Packet "A" then, the shortfalls will be communicated to the tenderer through e-mail only and compliance required to be made within a time period of three working days otherwise they will be treated as non-responsive.

iv. Bidders shall cross-check the uploaded documents by downloading the same at their end prior to submission of bid. No representation/complaint shall be entertained in this regard under any circumstances.

v. The bidder has to submit compliance of all shortfalls within the stipulated time period on-line only through email.

vi. All Documents Uploaded in Packet A Must Be Accurate and Complete in All Respects. Bidders Are Requested to Upload All Documents with Highest Precision.

vii. Any Discrepancy in The Above Will Be Treated as Shortfall.

viii. Any Forged / Fake document found uploaded then bidder will be disqualified and debarred from

all bidding process for five years.

4.0 QUALIFICATION CRITERIA AND EVALUATION PROCEDURE:

The bidder will be qualified on the basis of following:

(A) FINANCIAL CRITERIA: -

Minimum turnover of the bidder in any year in the last 05 years (Ending 31/03/2026) should be Rs.1.43 Cr (Excl. GST).

(B) POSSESSION OF DREDGER/S:

i. In order to execute the dredging work at Theronda the bidder should own following Equipment's

a. Backhoe Dredger with bucket of min 2.0 Cum. Capacity mounted on Dumb pontoon with Motorized / Hydraulic spud lifting / Lowering arrangement …02Nos

OR

Grab Dredger with bucket of min. 3.0 cum capacity, mounted on Dumb Pontoon with motorized / hydraulic spud lifting / lowering arrangement / four point motorised mooring arrangement…02 Nos.

OR

6" Suction Dredging Pump Powered by High-capacity Diesel Engine (Double Cylinder capacity >5M.T). The Complete set mounted on big boat with straight and revolving winches. A 4'x4' Double Pressure pump fitted with suction and delivery bend sets and dredging capacity of more than 100 cubicmeter per hour.

b. Self -Propelled Hopper Barge with Minimum cargo carrying capacity of 350 Cu.m….01Nos

c. Motor Tug with Minimum Engine power of 400 BHP…01 Nos.

ii. All Dredging Equipment's, in addition to Clause 4.0 (B) (i), required to achieve a minimum production of 3,000 Cu.m per day, may be Hired / Chartered. However, in case of Hiring / Chartering an 'Irrevocable Letter' of authority from the owner of the Dredger shall be produced by the bidder to the effect that the dredger so chartered shall not be withdrawn till completion of the dredging campaign. (FORM NO 3, To be Submitted during Technical Bid)

iii. All the hopper barges used for dumping the dredged material, deployed for execution of said project shall be equipped with vessel tracking system / AIS which should display name of the vessel, co-ordinates of dumping ground, date & time of dumping.

~~iv. In case of joint venture equipment's as mentioned clause 4.0 (B) (i) should be owned by lead partner.~~

(C) EXPERIENCE CRITERIA: -

Similar work successfully completed during the last five years (Ending 31th March 2026) –

At least one similar work not less than Rs.**1.52** Crore (Excluding GST)

OR

At least two similar works not less than Rs.**95.61** Lakhs (Excluding GST)

OR

At least three similar works not less than Rs**. 76.49** Lakhs (Excluding GST)

Details of work executed in last 5 years, along with work order copy, and its work completion certificate. (Ref: Form No 4).

Definition of Similar Work: -

Similar works means successfully completed dredging work in open sea / creek.

(D) DREDGE SPREAD:

The bidder should be capable to mobilize suitable dredge spread capable of executing the dredging work within the time schedule. The documentary evidence about the capability, availability, and mobilization to site, capacities and output of the deployed equipment in the prevailing site condition.

Details of dredger(s) and other supporting crafts with their statutory certificates and ancillaries etc. available and proposed to be deployed and their mobilization time to this site and capacities to complete works within stipulated time. (REF. FORM NO 3)

(E) WORKING BID CAPACITY OF CONTRACTOR (S)/AGENCIES-

a. The working bid capacity of the contractor should be equal to or more than the estimated cost of the work put to tender. The working bid capacity shall be worked out by the following formula

Working Bid Capacity = (A x N x 2) – B

Where,

A = Maximum Annual Turnover of the bidder for the last Three years (Ending 31st March 2026) (FORM NO 1)

N = Number of years prescribed for completion of work for which bids been invited.

B = Value of existing commitments and on-going works to be completed (for all the client of the Bidder) during the period of completion of work for which bids have been invited (Appendix –N)

Average annual financial turnover of last three audited years

(FY. 2021-22,2022-23,2023-24,2024-25,2025-26) (FORM NO 1, To be submitted during Technical Bid)

b. The details Submitted by the bidders will be evaluated also considering the working Bid Capacity of the Bidder apart from other requirements stated in the tender documents to determine bidder`s eligibility for the work. In case the working Bid Capacity of the bidder is lesser than estimated cost of the work put to tender his bid shall be cancelled and such a bidder shall not be considered for opening of Financial Bid / Tender opening even if he has been determined eligible in other eligibility criteria / tender requirement.

c. The Tenderer / Bidder shall submit the Details as required in Clause 4 (E) 1 above in performa at form Appendix –N & Appendix –R. During Technical Bid submission.

(F) Satisfactory executed in any single project of last Five years, the following minimum quantities of work As per PWD GR dt. 27/09/2018 (Form No. 6, Pg. No. 24)

Sr. No.	Item Description	Quantity
1	Dredging at Navigational Channel or Similar	16,800 Cum
2	Supplying and laying 100% PP Staple fibre Woven Geo bags of size Bag 2.00 x 1.50m filled with locally available sand of Tensile strength of 175 KN/M2 in MD/CD and elongation of 60/60 %.	150 Nos

8.0 <u>EARNEST MONEY DEPOSIT (EMD)</u>:-

Bidders are required to pay Earnest Money Deposit of **1,50,000 /-** (Rupees One Lakh Fifty thousand rupees Only) through Online Payment modes i.e. Net Banking during Bid Submission Stage. The said amount of earnest money shall not carry any interest what so ever ***(P.W. & H. Dept Corrigendum No. CAT-1075/16967-D- 3DT.14/5/76)***

This payment will not be accepted by the department through any offline modes such as Cash, Cheque or Demand Draft.

If for any reason a bidder fails to make this payment online modes, system won't allow the bidder to complete Bid Submission stage resulting in his/her elimination from Online Bidding Process.

EMD is mandatory to all the bidders for a tender, offers made without EMD shall be rejected.

EMD of unsuccessful bidders shall be refunded after issuance of work order to L1 bidder.

In Bid Submission stage, bidders get access to Online Technical and Commercial Envelopes where they require uploading documents related to technical eligibility criteria and quote commercial offer for the work/item in respective online envelopes.

If, after submitting the tender, the Contractor withdraws his offer or modifies the same, or if, after the acceptance of his tender the Contractor fails or neglects to furnish the balance amount of security deposit, without prejudice to any other rights and powers of the Government hereunder or in law, the Maharashtra Fisheries Development Corporation shall be entitled to forfeit the full amount of the earnest money deposited by him.

In the event of his tender not being accepted, the amount of earnest money deposited by the Contractor shall, unless it is prior thereto for feited under the provisions of above clause, be refunded to him on his producing receipt therefore ***(B. & C. Dep't. Resolution No. CAT-1272/44277-Q DT. 3/3/1973.)***

9.0 <u>SECURITY DEPOSIT</u>:

a. Total security deposit to be paid shall be 1% of the accepted tender cost. The successful tenderer shall have to pay 0.5% of the security deposit in the form of Demand Draft within 07 working days from the date of issue of Letter of Acceptance (LOA). The security deposit has to be in the form of Demand Draft in favour of Maharashtra Fisheries Development Corporation, Mumbai from any nationalized/scheduled bank payable at South Mumbai. EMD of 0.5% submitted by the bidder during the tendering process will be converted in to Security Deposit.

b. The total security deposit of 1% of the contract value, shall remain with MFDC till the completion of the contract or the payment of the final bill payable in accordance with agreement condition whichever is later.

c. If the contractor neglects to observe or fails to perform any of his obligations under the contract, EXECUTIVE ENGINEER can forfeit either in whole or in part, the security deposit furnished by the contractor. However, if the contractor duly performs and completes the contract in all respects and presents in absolute "NO DEMAND CERTIFICATE" in the prescribed form, the MMB shall refund the security deposit to the contractor after deduction of cost and expenses that the Authority may have incurred and other money including all losses and damages which the Authority is entitled to recover from the Contractor.

d. In case of delay in the progress of work, the Executive Engineer shall issue to the contractor a memo in writing pointing out the delay in progress and calling upon the contractor to explain the causes for the delay within 3 days of receipt of the memo and 10 days from issuance of memo whichever is earlier. If the Executive Engineer is not satisfied with the explanations offered, he may forfeit the security deposit and / or withhold payment of pending bills in whole or in part and/ or get the measures of rectification of progress of work accelerated to the pre-defined level at the risk and cost of the contractor.

e. All compensation or other sums of money payable by the contractor under the terms of the contract or any other contract or on any other account whatsoever, may be deducted from or paid by the sale of a sufficient part of his security or from the interest arising there from or from any sums which may be due or may become due to the contractor by the Authority on any account whatsoever. Also, in the event of the contractor's security deposit being reduced by reasons of such deductions or sale, as aforesaid the contractor shall, within 14 days of receipt of notice of demand from the Executive Engineer make good the deficit in his security deposit.

f. In case the contractor fails to commence the dredging or when the contractor has defaulted for more than thirty days or when any amount is to be recovered from the contractor as penalty or deduction and the contractor fails to remit such amount even after due notice is given to him in this regard, MFDC at its own discretion may forfeit security deposit.

The additional (Performance) security deposit: The additional (Performance) security deposit shall be over and above the earnest money deposit. Bidders quoting their price below the cost put to tender shall have to pay Additional (Performance) security deposit only in the form of DD as per the following:

If the quoted tender is from 1% to 10% below, additional (Performance) security deposit of 1% of cost put to tender. The tenderer should submitted additional (Performance) security deposit as stated below.

If the quoted tender is below -10% to -15%, additional (Performance) security deposit of 1% for every percentage point below 10% of the cost put to tender. e.g. If the quoted tender is -14%, then additional (Performance) security deposit will be 1% plus 4% (14-10) i.e. 5%.

If the quoted tender is below 15%, additional (Performance) security deposit of 2% for every percentage point below 15% of the cost put to tender. e.g. If the quoted tender is -19%, then additional (Performance) security deposit will be 1%(for upto 10% below) plus 5%(For more than 10% upto 15%) plus 8% (For more than 15% below i.e. 2% for each percent below) (1+5+8) i.e. 14%.

10.0 <u>PERFORMANCE GUARANTEE:</u>

The successful Bidder will be required to submit a Performance Security in form of Bank Guarantee/DD of nationalized/scheduled Bank of sum equivalent to 5% of contract value (Excl. GST) for that particular work within 07 days from issue of work order for particular work.
The Bank Guarantee has to be valid up to 31st May 2027. In case the work schedule gets extended, in such case the Bank Guarantee has to be valid for 03 months beyond such extension period.

a) If the Performance Security are not furnished within 07days of the work order for particular work tender or such extended period as may be permitted by the Executive Engineer in writing, the earnest money is liable to be forfeited and the contract cancelled.

b) MFDC may at their option forfeit the Security deposit and Performance Security if the Bidder fails to affect the supply or perform or observe the conditions of contract. MFDC will also be at liberty to deduct any sum that may be due to the MFDC from the Security deposit and Performance Security or from any sums of money due or that may become due under any other contract to the Bidder. This is without prejudice to the rights of MFDC under the terms of the contract.

c) The said Security deposit and Performance Security shall not in any way be construed as a limitation of the Bidder's responsibility or liability pertaining to his obligations and/or guarantees under the contract and shall be without prejudice and in addition to any other remedies available to the MFDC in terms of the contract and/or the laws of the land.

d) The security deposit and performance security will be released only on satisfactory completion of entire scope of works contemplated in this contract.

11.0 SCOPE OF WORK:

11.1 AREA TO BE DREDGED:

a. To carry out Maintenance Dredging along the navigational channel at Theronda as indicated on hydrographic chart as 2491/2026 Area"A" 440m x 25m, Approx Qty: 56,000 Cu.m , Depth to be achieved 1.5m wrt CD.
b. The bottom width and dimension shown on the drawing are clear inside dimensions exclusive of any side slopes. The side slopes (both sides) in dredging shall be 1:3 and tolerance in vertical level upto 30 cm below.
c. The dredging at the navigational channel at Theronda has to be carried out in co-ordination with the Local Fishermen in such a way that the schedule is not disturbed and should ensure that the channel is safe for Navigation.

11.2 DEPOSITION OF DREDGED MATERIAL:

a. Dredged material is to be dumped at dumping area as designated by Mumbai Port Trust (MbPT). However dumping area is located at an average distance of 11.66 N.m (approx 21.61 km one way) in deep sea. The contractor at his own cost should comply with all necessary formalities to obtain permission of dumping from MbPT. The Contractor should submit the copy of Pass Pilots issued by Mbpt for all the vessels deployed in the dredging work.

b. The contractor shall ensure that the dredged material is not dumped outside the limits of the dumping area. The contractor shall provide at his own cost global positioning system unit to locate and monitor position of dumping. The contractor shall coordinate with MbPT`s vessel traffic management system (VTMS). The contractor should maintain GPS positioning and AIS log for proving vessels transit from dredging location to dumping site and back. AIS / GPS logs clearly mentioning the name, registration number of vessel, date & time and position of dumping should be submitted along with running bill.

c. The master of the barge should inform VTS, MBPT prior dumping so that actual position can be verified by VTS MBPT. A record shall be kept of the position and time of each hopper discharge and this record shall be forwarded to EXECUTIVE ENGINEER every week. In case of dumping done at unauthorised places, such quantities so dumped and as assessed by the Executive Engineer / Hydrograper /MbPT/or any other authority shall not be payable.

d. The cost of mobilisation of plants and equipment, dredging and disposal of dredged material to the dumping area, demobilisation of plants and equipment's shall be deemed to have been included in the unit rates of dredging.

e. The Executive Engineer reserve the right to direct the contractor to remove material dumped outside the limits of the dumping area. Such work shall be carried out at the contractor's expense and shall not be payable by MFDC.

11.3. QUANTITY TO BE DREDGED:

a. The Total quantity to be dredged is approximately 56,000 Cu.m.

b. The Final quantity to be dredged shall be based on joint pre dredging survey between MFDC and contractor. The joint pre-dredging survey shall be carried within 05 days from the issuance of LOA.

c. The quantity submitted by Hydrographer, MMB shall be treated as final and payable. The payment shall be made for the dredged quantity as per the post dredging survey report by Hydrographer, MMB.

11.4 TEST FOR COMPLETION OF AN OPERATION OF DREDGING:

Execution of dredging work will be treated as completed only if all the following jobs are carried out:-

a) Execution of Maintenance Dredging along the navigational channel at Theronda as indicated on hydrographic chart 2491/2026 as Area "A" 440 m x 25m, Approx Qty: 56, 000Cu.m, Depth to be achieved 1.5m wrt CD

b) The dumping of silt shall be carried out at the designated location only. If, it is found that the dumping of silt is done at location other than the designated location than the contractor, at its own cost has to re-dredge the material and dispose it at the designated location. No extra cost shall be provided by MMB for re-dredging such material.

c) The contactor at its own cost shall conduct joint hydrographic survey for following period and submit hydrographic chart and report to Executive Engineer.
   i) Pre Dredging Survey
   ii) Intermediate dredging survey.(a*s & when required)*
   iii) Post dredging survey after completion of 100% of dredging work.
   iv)

11.5 HYDROGRAPHIC SURVEY

a. The contactor at its own cost shall conduct joint hydrographic survey for following period and Submit hydrographic chart and report to Executive Engineer.
   i) Pre Dredging Survey
   ii) Intermediate dredging survey during execution of dredging work (a*s & when required)*
   iii) Post dredging survey after 100% completion of dredging work.

b. Maharashtra Fisheries Development Corporation shall appointed **IIT Bombay** as Third Party Inspecting Agency to witness all the proposed Joint Hydrographic survey as proposed in clause 11.5 (a) and the reports / findings will be cross examined by **IIT Bombay**. The consultancy fees towards appointment of **IIT, Bombay** shall be on Maharashtra Fisheries Development Corporation account. The contractor shall extend all necessary cooperation to the Third Party Agency and MFDC

c. The level of the sea bed shall be recorded by means of echo sounding equipment using frequency 210 khz. Soundings and to be taken on lines at 10 meter apart or such spacing as directed by the Executive Engineer, MFDC. Tides to be measured during the duration of hydrographic survey by erecting a tide pole / atg. Predicted tide is not to be used for reduction of sounding.

d. The equipment shall be calibrated in the presence of the Hydrographer / Hydrographer`s representative before and after carrying out soundings. All the levels shall be reduced to chart datum. On completion of the surveys the soundings shall be mutually verified and agreed upon between the Hydrographer and contractor and the contractor shall prepare record drawings to a scale as approved by the Hydrographer to show the pre-dredging / monthly surface levels of the sea bed.

e. Three hard copies of the charts duly signed by the contractor and the hydrographic is to prepared and one copy each is to be submitted to Executive Engineer, Hydrographer and Ro – Pax operator every month. These drawing shall form the basis for measurement. It is to be noted that for the purpose of computation of depths/ volumes of material for payment, recordings using 210 khz only will be used.

11.6. TIME OF COMPLETION FROM DATE OF NOTICE:

The time for completion shall be calculated on the assumption that the dredging unit is capable to dredge 3000 cum of dredged material in a day. Excluding the time allotted for mobilization of dredging equipment to the dredging site under the notice period. The actual time for completion will be mentioned in work order.

Dredging of quantity determined in pre-dredging survey and minimum depth Navigational channel as mentioned in clause 11.1 should be achieved in days calculated as below:-

No of Days to complete work = [(Qty. to be dredged in Cum /3000)]

Note:-i) 01 days for intermediate dredging survey.(As per Requirement)
ii) ***03 days*** *for Mobilisation of dredging equipment from the date of issuance of work order.*
iii) The contractor shall be permitted to execute Dredging work only during fair weather Conditions i.e. up to ***24th May of the calendar year****.*

12.0 TECHNNICAL BID

Scanned copy of the following documents in PDF format as in the enclosure (Annexure-I) in support of the technical bid requisites has to be uploaded under Online Technical Envelope. These documents need to be digitally signed by individual contractor's digital signature and uploaded during Online Bid Submission stage.

12.1 COMMERCIAL BID:

All commercial offers must be prepared online (An online form will be provided for this purpose in Online Commercial Envelope, during Online Bid Submission stage).

~~13.0 BID BY JOINT VENTURE / CONSORTIUM:~~

~~The e-bids from JV/Consortium will also be considered. All partners of JV/ Consortium shall be legally liable, jointly and severally during the bidding process and for execution of contract in accordance with contract terms. The JV/Consortium shall declare the lead partner in MoU. The share of lead partner shall not be less than 51% in JV/Consortium. The share of other partner shall not be less than 26%. The MoU executed by the JV members shall be submitted along with the tender.~~

~~The JV must further comply with the following minimum requirements:~~

~~a. The lead partner must meet all the specified technical experience criteria as per Clause 7.0(C) above.~~

~~b. The lead partner should fulfil at least 40% of the specified financial criteria as per Clause 7.0(A)~~

~~c. The other partner should fulfil at least 26% of the specified financial criteria as per Clause 7.0(A)~~

~~d. Lead Partner shall be the authorised member to act as single point of contact and shall be responsible on behalf of JV.~~

~~e. A member of JV firm will not be permitted to participate either in individual capacity or as a member of another JV firm for this tender.~~

14.0 DEFINITIONS:

In the contract, the following words & expression shall, unless context otherwise requires, have the meaning thereby respectively assigned to them:

Contract: means the documents forming the tender and acceptance thereof , the specifications, designs, drawings and instructions issued from time to time by the Executive Engineer and all these documents taken together shall be deemed to form one contract and shall be complementary to one another.

Contract sum; means the amount arrived at by multiplying the quantities shown in the schedule of quantities and price by the respective item rates as allowed.

Contractor: means the successful tenderer who is awarded the contract to perform the work covered under these tender documents and shall be deemed to include the contractor's successors, executors, representatives or assign approved by the Executive Engineer.

The Expression "The Managing Director" as used anywhere in the tender papers shall mean Managing Director, Maharashtra Fisheries Development Corporation, Mumbai.

Marine Engineer & Chief Surveyor (MECS) means the Marine Engineer officer authorized to supervise and monitor

Executive Engineer means the Executive Engineer officer authorized to execute, supervise and be In-charge of the works for the purpose of this contract who shall supervise, monitor

MFDC representative shall mean any officer/Staff of the Authority nominated by the Executive Engineer for day to day supervision, checking, taking measurement, checking bills, ensuring quality control, inspecting works and other related works for completion of the project.

Work Order means a letter from the Authority conveying the acceptance of the tender/ offer subject to such reservations as may have been stated therein.

Day: means a calendar day beginning and ending at mid-night.

Week: means seven consecutive calendar days

Month: means the one Calendar month.

Site means the creek, channel, estuary, river, inland water etc. through which the works are to be executed.

Vessel: Any inland vessel / dredger operating in the Inland limits including the dredging units.

Drawings: means the drawings referred to in the specifications and / or appended with the tender document, any modifications of such drawing approved in writing by the EXECUTIVE ENGINEER and shall also include drawings/ charts issued for actual execution of the work time to time by the EXECUTIVE ENGINEER.

Urgent Works: means any urgent nature which in the opinion of the Executive Engineer become necessary at the time of execution and / or during the progress of work to obviate any risk or accident or failure or to obviate any risk of damage to the vessel structure, or required to accelerate the progress of work or which becomes necessary for security or for any other reason the Executive Engineer may deem expedient

Work: means work to be executed in accordance with the contract.

Schedules referred to in these conditions shall mean the relevant schedules annexed to the tender papers.

Tendered value means the value of the entire maintenance dredging work as stipulated in the letter of award.

15.0 RESPONSIVENESS OF PROPOSAL:

A responsive proposal is one which confirms to all the requirements of the bid document. A proposal shall be treated non-responsive for any of the following reasons:

Non-submission of the duly filled formats as in Annexure & Forms i.e integral part of the tender.

The validity of the proposal is not confirmed.

The proposal and supporting documents show significant variations and or inconsistency/ies.

Proposal not duly signed by the authorized signatory.

Bid Rejection Criteria:

The bidders are informed about the bid rejection criteria stated as below:

Bids received after the tender closing date and time.

Bids received without EMD as a specification in the tender**.**

The submitted bids have to be unconditional only. In case the conditional bid is accepted by MFDC it will be treated as null & void.

Following bid rejection criteria may render the bids liable for rejection with the approval of Tender Committee:

Incomplete/Misleading /ambiguous/conditional bids in the considered opinion of MFDC

Bidders not agreeing to furnish required Security Deposit as mentioned tin Tender documents.

Validity period indicated by the bidder is shorter than as specified in the tender document.

Bidders not meeting the qualification parameters stipulated in the tender document.

Bidders have made misleading or false representations in the statements; attachments submitted in proof of the qualification requirements.

MFDC will reserve the right to accept / reject any offer either in full or in part or accept any offer other than the lowest offer without assigning any reason whatsoever.

16.0 TECHNICAL SPECIFICATIONS OF DREDGING WORK:-

1. Dredged material is to be dumped at dumping area as designated by Mumbai Port Trust (MbPT). However dumping area is located at an average distance of 11.66 N.m (approx 21.61 km one way) in deep sea. The contractor at his own cost should comply with all necessary formalities to obtain permission of dumping from MbPT.

2. The waterway / channel / creek etc. shall be dredged to maintain depth as mentioned in Clause 11.1

3. The side slope are 1:3 and width (The width is varying at certain locations please refer the Chart for details). The tolerance allowable in depth shall be +30 CM on each side from C/L of channel, creek and that in depth +30 CM from the specified depth. Depth could exceed up to +30 CM beyond the specified minimum depth for which payment will be made. Quantities on account of depth exceeding +30 CM and width exceeding the specified tolerance limit will not be considered for payment. In any stretch of dredged channel, if the depth or width is less than the specified limits, the Executive Engineer will examine the shortcomings keeping in view the navigational requirements and his decision to accept the work done or to order re-dredging of the channel shall be final and binding on the contractor.

4. The area to be dredged has been indicated by the MFDC based on hydrographic survey charts. Pre and Post dredging surveys shall be carried out by the contractor in association with Hydrographer or his representative and third party agency (if appointed by MFDC)

5. Sounding boat/Survey launch, survey equipment, qualified survey personnel required for conducting pre and post dredging surveys shall be supplied by the contractor at his cost, such survey is to be conducted along with representative of Engineering Department. Recording type Digital Echo sounder having 0.1 m accuracy for depth measurement and GPS/DGPS/RTKS GPS having sub-meter accuracy for position fixing shall be used for survey purpose. Automatic Hydrographic Survey System using HYPACK (Licensed) may be used in survey work. However, In case the bidder wish to avail the services from Hydrography Department, MFDC, the service is payable as per government approved rates.

6. The total quantity to be dredged and excavated in the stretch at dredging sites shall be based on joint regular/monthly Hydrographic survey report. However, the quantity certified by Hydrographer, MFDC shall be final and the payments shall be made accordingly.

7. Actual quantity dredged including allowable tolerance in the waterway shall be assessed based on the joint pre and post dredging surveys.

8. The contractor shall submit the survey charts and digital survey data in along with the Bills.

9. After the pre-dredging survey and as soon as the alignment of channel to be dredged is released by MFDC, the proposed dredging channel shall be marked by marker Buoy /Bamboo at an interval of 20 m on both sides by the contractor with no extra cost. The bamboos shall be driven to a suitable depth in the bed and shall project a minimum length of 1.5 m above the water level.

17.0 PROJECT DESCRIPTION:

i. To carry out dredging at the Navigational Channel at Theronda (AREA "A) within stipulated time period and to dump the dredged material to the designated dumping location . To achieve assured depths and side slopes indicated in drawings and specifications, including all leads and lifts to lines and levels, pre, intermediate, post dredge surveys, all as specified and as directed by the EXECUTIVE ENGINEER. To clear the Navigational Channel after dredging.

ii. The purpose of said tender is to maintain the dredged the Navigational Channel as indicated on Hydrographic chart 2491/2026 and maintain assured depth as mentioned in Scope of work and Bottom width of 25 m, with both side slope 1:3 and tolerance of +30 CMs below for the tenure of said contract.

iii. The Environmental and CRZ Clearance for the proposed project is available.

iv. It is strongly suggested that interested bidders to participate in the bidding process after site visit to access their feasibility for successful work.

18.0 TERMS & CONDITIONS:

The tender terms & conditions include but to not limited to the following whereas additional required terms &conditions may be included in the agreement (Terms of the agreement will always prevail over the terms & conditions of this tender**)**

18.1 SUFFICIENCY OF TENDER:

a. The contractor shall be deemed to have satisfied himself before tendering as to the correctness and sufficiency of his tender for the works and of the rates quoted in the schedule of Quantities and Prices which shall (except as otherwise provided in the contract) cover all his obligations under the contract and all matters and things necessary for the proper execution and completion of the works in accordance with the provisions of the contract and its operation during execution of work.

b. The Time period for completion of work as described in scope of work will be based on quantity to be dredged as per Hydrographic survey report and shall be calculated on the assumption of dredging unit capacity of **3,000 Cum** per day plus sufficient allowances of mobilisation of dredging unit at site and obtaining all necessary permissions from various government agencies.

18.2 COMPLETION TIME AND EXTENSIONS:

a. The MFDC will make available the site to the contractor for enabling him commencement of work& proceed with the execution of the work in accordance with agreed programme. If there is any delay in making available any area of the work or the delays mentioned in Para, the competent authority as specified in schedule on the recommendations of the MFDC shall grant reasonable extension of time

for completion of work. MFDC shall decide the extension and convey the same to the contractor. But the contractor shall not claim any compensation whatsoever on this account.

b. If after the award of the work the contractor commits defaults in commencing the execution of work as aforesaid, MFDC shall without prejudice to any other right or remedy available in law, be at liberty to forfeit the earnest money and Security Deposit absolutely.

c. **The contractor shall submit a Time & Progress chart for each milestone during submission of bid.** Request for rescheduling of Mile stones and extension of time, to be eligible for consideration, shall be made by the Contractor in writing within 07 days of the happening of the event causing delay on the prescribed form to the Executive Engineer. The Contractor may also, if practicable, indicate in such a request the period for which extension is desired.

d. In any such case as may have arisen due to any of the events of Force Majeure and which may have been brought out by the contractor in writing, the Competent Authority mentioned in Scheduled may give a fair and reasonable extension of time, after taking into consideration the nature of the work delayed and practicability of its execution during the period of extension.

Dredging has to be carried out in such a manner so as to facilitate minimum quantity of the flow through the channel at all times for operational feasibility of water transport. As directed by the EXECUTIVE ENGINEER, the excavated material shall be disposed off by the contractor in such a manner so as to keep the stream free from obstruction. Cleaning the sites and restoring the levels after completion of work as directed by Executive Engineer. The excavated material must not be deposited in a way which will obstruct the stream or spoil its regime or in any way adversely affect the same during or after the excavation.

e. A coffer dam and approach road may be constructed by the contractor at no extra cost to reduce the velocity of the low tidal water and working platform. Contractor shall dismantle the same after the completion of the work. The contractor shall also note that no extra payment shall be made to his employees over and above the accepted tender rate for components of work which are deemed to be part of the respective tender items. The work will include provision and maintenance of temporary approaches within the area of operation and removal thereof on completion of work as approved by Executive Engineer.

As directed by the Engineer-in-charge, the contractor shall obtain mandatory permission from Maharashtra Fisheries Development Corp, Mumbai, Police Department, Coast Guard etc. for keeping barge and machinery in creek. The contractor shall enable all the arrangement for monitoring the dredged material excavated under the guidance of Engineer-in-charge.

f. All supervisor and workman in charge of handling storage shall be adequately insured by the contractor. The contractor shall have to produce a security for the person in charge of machinery if and when required by the Engineer-in-charge, Civil authorities and Maharashtra Fisheries Development Corporation, Mumbai. The Contractor shall make sure that his supervisor and workmen are fully conversant with all the rules to be observed in storing, handling and use of the machinery. It shall be ensured that the supervisor in charge is thoroughly acquainted with the details of the machinery, tools, plants and work to be executed. The contractor shall make all necessary storage facility for the storage of the dredged material as per rules of the Local Authorities, State Government & Government of India. The contractor shall at his own expenses obtain such licenses as may be necessary for storing &using of oils, fuels etc. The department shall not be responsible for the above storage or use of fuels on the site of any accidents or occurrence what so ever in connection therewith. The responsibilities and risk related to it would be solely with the contractor.

18.3 MEASUREMENTS:

a. Bathymetric survey/Intermediate/Final Dredging Survey

The contactor at its own cost shall conduct joint hydrographic survey which will be witnessed by **IIT Bombay** as Third Party Inspecting Agency for following period and as and when required.

Submit hydrographic chart and report to MFDC dept.

i) Pre-dredging survey within 05 days from date of issue of LOA.

ii) Intermediate dredging survey during execution of work. (a*s & when required)*

iii) Post dredging survey after completion of 100% of dredging work.

b. On completion of each survey, Contractor shall prepare record drawings showing surface levels of the bed reduced to Chart Datum and submit the same to the Engineer-in-charge for approval. These approved drawings shall be used for interim measurement and payment. Software as approved by the Hydrographer should be used for hydrographic data processing, editing, plotting, contouring, profiling and quantity calculation and digitizing.

c. The Joint survey shall be done by using MFDC`s hydro graphic survey launch and all equipment's used for surveying shall supplied by MFDC. The service provided by MFDC`s Hydographic department shall be chargeable as per government approved rates and the expenses shall be bored by the contractor.

d. In the event of non-availability of MFDC`s Hydrographic survey launch / Survey equipments, the contractor has to arrange for Joint Survey by Hiring Hydrographic Survey launch and Survey Equipment. The contractor has to bear all the expenses occurred during such joint survey.

e. The contractor shall, without extra charge, provide assistance with every appliance, labour and other things necessary for measurement. If the contractor objects to any of the measurement recorded by the representative of the Hydrographer Department, MFDC a note to the effect shall be made in the item objected to and such note shall be signed and dated by both parties engaged in taking the measurement. The decision of the Hydrographer on any such dispute or difference or interpretation shall be final and binding on the contractor in respect of all contract items, substituted items, extra items and deviations.

18.4 COMPLETION CERTIFICATE AND COMPLETION PLANS:

a) The work shall be completed to the entire satisfaction of the Executive Engineer and within the specified time limit and under the terms and conditions of the contract. As soon as the work under the contractor is completed as a whole the contractor shall give notice of such completion to the Executive Engineer and MFDC`s Hydrographer. The Hydrographer or his representative shall inspect the work by carrying out post Dredging survey and shall satisfy himself that the work(s) has been completed in accordance with the provisions of the contract and submit the report to Executive Engineer. Executive Engineer on receipt of satisfactory report shall then issue to the Contractor a certificate of completion indicating the date of completion. Should the Executive Engineer notice that there are defects in the works or the works are not considered to be complete, he shall issue a notice in writing to the Contractor to rectify / replace the defective work or any part thereof or complete the work, as the case may be within such time as may be notified and after the contractor has complied with as aforesaid and gives notice of completion, the Hydrographer or his representative shall inspect the work and submit the report to EXECUTIVE ENGINEER , on receipt of satisfactory report , Executive Engineer shall issue the completion certificate in the same manner as aforesaid.

b) No certificate of completion shall be issued as stipulated above and no work be considered to be completed unless the contractor shall have removed from the work site and / or premises all his belongings / temporary arrangements brought / made by him for the site and / or premises in all respects and made the whole of the site and / or premises fit for immediate occupation / use to the satisfaction of the Executive Engineer. If the contractor fails to comply with the above mentioned requirements on or before the date of completion of the work, the Executive Engineer, may as he thinks fit and at the risk at cost of the contractor, fulfil such requirements and remove / dispose of the

contractor's belongings / temporary arrangements, as aforesaid, and the contractor shall have no claim in this respect except for any sum realised by the sale of Contractor's belongings / temporary arrangements less the cost of fulfilling the said requirements and any other amount that may be due from the contractor. Should the expenditure on the aforesaid account exceed the amount realised by sale of such contractor's belongings / temporary arrangements then the contractor shall on demand pay the amount of such excess expenditure.

18.5 INSPECTION AND APPROVAL:

a. All works involving more than one process shall be subject to examination and approval at each stage thereof and the contractor shall give due notice to the Executive Engineer or his authorized representative, when each stage is ready. In default of such notice, the Executive Engineer shall be entitled to appraise the quality and extent thereof and the decision of the Executive Engineer in this regard shall be final and binding.

b. The contractor shall give due notice to the Executive Engineer and Hydrographer, MFDC or his authorized representative whenever any such work is ready for examination and the Hydrographer or his representative shall, without unreasonable delay, unless he considers it necessary and advise the contractor accordingly, examine and measure such work. In the event of the failure or the contractor to give such notice, he shall if required by the Executive Engineer, uncover such work at the contractor's expenses.

c. Periodic inspection will be carried out by the MECS`s Hydrographer or his representative. The contractor can have the inspection schedules finalized with the Executive Engineer. Generally, all attempts should be made to have joint inspection and number of inspections can be two in a calendar month.

18.6 DEVIATIONS, VARIATIONS, EXTENT AND PRICING:

The Executive Engineer shall have power

a. To make alteration, omissions, additions, or substitutions for the original specifications, drawings, designs and instructions that may appear to him to be necessary or advisable during the progress of the work, and

b. To omit a part of the works in case of non-availability of a portion of the site or for any other reasons and the contractor shall be bound to carry out the works in accordance with any instructions given to him in writing signed by the Executive Engineer and such alterations, omissions, additions or substitutions shall form part of the contract as if originally provided therein and any altered, additional or substituted work which the contractor may be directed to do in the manner specified above as part of the works, shall be carried out by the contractor on the same conditions in all respects including price on which he agreed to do the main work except as hereafter provided. The time for completion of the works shall, in the event of any deviations resulting in additional cost over the tendered value sum being ordered, be extended, if requested by the contractor, as follows:

i. In the proportion which the additional cost of the altered, additional or substituted work, bears to the original tendered value plus

ii. 25% of the time calculated in (i) above or such further additional time as may be considered reasonable by the Executive Engineer.

c. Under any circumstances, the contractor shall at any stage not suspend the work on account of non-settlement of rates of such Deviated/Extra/Substituted items.

18.7 URGENT WORKS:-

If any urgent work (in respect of which the decision of the Executive Engineer shall be final and binding) becomes necessary, the contractor shall execute the same as may be directed by EXECUTIVE ENGINEER, provided the directions are in accordance and confirmatory with provisions in Clause.

18.8 SETTING OUT THE WORKS:

The contractor shall provide all assistance and adhere to the instruction of Executive Engineer during the course of surveying, inspection, etc.

18.9 WORKS TO BE CARRIED OUT IN ACCORDANCE WITH SPECIFICATION DRAWINGS AND ORDERS ETC.:

The contractor shall execute the whole and every part of the work in the most substantial and workman like manner in strict conformity with the specifications laid down in the contract document or as may be laid down by the Executive Engineer under the terms of the contract. The contractor shall also conform exactly, fully and faithfully to the designs, drawings specifications and instructions in writing in respect of the work, duly signed by the Executive Engineer as may be issued from time to time.

Further drawings, explanation, modifications and instruction, as the Executive Engineer may issue to the contractor from time to time in respect of the work shall be deemed to form integral part of the contract and the contractor shall be bound to carry out the work accordingly.

18.10 COMMENCEMENT OF WORK:

The contractor shall commence the work at the respective sites within 04 days from the date of issuance of work order. If the contractor commits default in mobilization of resources, and equipment as aforesaid, the EXECUTIVE ENGINEER shall without prejudice to any other right or remedy be at liberty to cancel the contract and forfeit the earnest money/security deposit.

18.11 CARRYING OUT PART OF WORK AT THE RISK AND COST OF THE CONTRACTOR:

1. If the contractor:

a. At any time makes default during the currency of work or does not execute any part of the work with due diligence and continues to do so even after a notice in writing of 07 days in this respect from the Executive Engineer;

or

b. Commits default in complying with any of the terms and conditions of the contract and does not remedy it or takes effective steps to remedy it within 07 days even after a notice in writing is given in that behalf by the Executive Engineer;

or

c. Fails to complete the work (s) or items of work with individual dates of completion, on or before the date (s) so determined, and does not complete them within the period specified in the notice given in writing in that behalf by the Executive Engineer.

2. The Executive Engineer without invoking action under clause herein may, without prejudice to any other right or remedy against the contractor which have either accrued or accrue thereafter to MFDC, by a notice in writing to take the part work/ part incomplete work of any item (s) out of his hands and shall have powers to:

a. Take possession of the site and any materials, constructional plant, implements, stores, etc., thereon; and/ or

b. Carry out the part work/ part incomplete work of any items (s) by any means at the risk and cost of the contractor.

3. The Executive Engineer shall determine the amount, if any, is recoverable from the contractor for completion of the part work/ part incomplete work of any item (s) taken out of his hands and execute at the risk and cost of the contractor, the liability of contractor on account of loss or damage suffered by MFDC because of action under this clause shall not exceed 10% of the tendered value of the work.

4. In determining the amount, credit shall be given to the contractor with the value of work done in all respect in the same number and at the same rate as if it had been carried out by the original contractor under the terms of his contract, the value of contractor's materials taken over and incorporated in the work and use of plant and machinery belonging to the contractor. The certificate of the Executive Engineer as to the value of work done shall be final and conclusive against the contractor provided always that action under this clause shall only be taken after giving notice in writing to the contractor. Provided also that if the expenses incurred by the MFDC are less than the amount payable to the contractor at his agreement rates, the difference shall not be payable to the contractor.

5. Any excess expenditure incurred or to be incurred by MFDC in completing the part work/ part incomplete work of any item (s) or the excess loss of damages suffered or may be suffered by MFDC as aforesaid after allowing such credit shall without prejudice to any other right or remedy available to MFDC in law or as per agreement be recovered from any money due to the contractor on any account, and if such money is insufficient, the contactor shall be called upon in writing and shall be liable to pay the same within 30 days.

6. If the contractor fails to pay the required sum within the aforesaid period of 30 days, the Executive Engineer shall have the right to sell any or all of the contractors' unused materials, constructional plant, implements, temporary building, vessels, equipment's, accessories etc. at site and adjust the proceeds of sale thereof towards the dues recoverable from the contactor under the contract and if thereafter there remains any balance outstanding, it shall be recovered in accordance with the provisions of the contract.

7. In the event of the above course being adopted by the Executive Engineer, the contractor shall have no claim to compensation for any loss sustained by him by reason of his having purchased or procured any materials or entered into any engagements or made any advance on any account or with a view to the execution of the work or the performance of the contract.

18.12 CONTRACT DOCUMENTS:

A contract Document may be executed in the event if there is amendment / addition in the clause of the existing tender document and acceptable to both the parties.

a. The language in which the contract documents shall be drawn up shall be English.
b. The Contractor shall be furnished free of charge certified true copy of the contract document.
c. A copy of the Contract Document furnished to the Contractor as aforesaid shall be kept by the Contractor on the Site in good condition and the same shall at all reasonable time be available for inspection and use by the Executive Engineer, his representatives or by other Inspecting officers of the MFDC.
d. None of these Documents shall be used by the Contractor for any purpose other than that of this contract.

18.13 WHEN THE TENDER/CONTRACT CAN BE DETERMINED/TERMINATED:

1. Subject to other provisions contained in this clause, the MD, MFDC may, without prejudice to his any other rights or remedy against the contractor in respect of any delay, inferior workmanship, any claims for damages and/or any other provisions of this contract or otherwise, and whether the date of completion has or has not elapsed, by notice in writing absolutely determine/terminate the contract in any of the following cases:

   a. If the contractor having been given by the MFDC a notice in writing to rectify, reconstruct or replace any defective work or that the work is being performed in an inefficient or otherwise improper or un-workman like manner shall omit to comply with the requirement of such notice for a period of seven days thereafter.

   b. If the contractor has, without reasonable cause, suspended the progress of the work or has failed to proceed with the work with due diligence so that in the opinion of the Executive Engineer he will be unable to secure completion of the work by the date for completion and continues to do so after **a notice in writing of seven days** from the Executive Engineer.

c. If the contractor fails to complete the work within the stipulated date or items of work with individual date of completion, if any stipulated, on or before such date(s) of completion and does not complete them within the period specified in a notice given in writing in that behalf by the Executive Engineer.

d. If the contractor persistently neglects to carry out his obligations under the contract and/ or commits default in complying with any of the terms and conditions of the contract and does not remedy it or take effective steps to remedy it within 07 days after a notice in writing is given to him in that behalf by the Executive Engineer.

e. If the contractor shall offer or give or agree to give to any person in MFDC service or to any other person on his behalf any gift or consideration of any kind as an inducement or reward for doing or forbearing to do or for having done or forborne to do any act in relation to the obtaining or execution of contract.

f. If the contractor shall enter into a contract with MFDC in connection with which commission has been paid or agreed to be paid by him or to his knowledge, unless the particulars of any such commission and the terms of payment thereof have been previously disclosed in writing to the Executive Engineer.

g. If the contractor shall obtain a contract with MFDC as a result of wrong tendering or other non-bonafide methods of competitive tendering or commits breach of integrity pact.

h. If the contractor being an individual, or if a firm, any partner thereof shall at any time be adjudged insolvent or have a receiving order or order for administration of his estate made against him or shall take any proceedings for liquidation or composition (other than a voluntary liquidation for the purpose of amalgamation or reconstruction) under any Insolvency Act for the time being in force or make any conveyance or assignment of his effects or composition or arrangement for the benefit of his creditors or purport so to do, or if any application be made under any Insolvency Act for the time being enforce for the sequestration of his estate or if a trust deed be executed by him for benefit of his creditors.

i. If the contractor being a company shall pass a resolution or the court shall make an order that the company shall be wound up or if a receiver or a manager on behalf of a creditor shall be appointed or if circumstances shall arise which entitle the court or the creditor to appoint a receiver or a manager or which entitle the court to make a winding up order.

k. If the contractor assigns, transfers, sublets (engagement of labour on a piece-work basis or of labour with materials not to be incorporated in the work, shall not be deemed to be subletting) or otherwise parts with or attempts to assign, transfer, sublet or otherwise parts with the entire works or any portion thereof without the prior written approval of the Executive Engineer.

l. During the tendering process, due to technical/administration issues, the tender may be cancelled subject to Hon. MD, MFDC approval.

When the contractor has made himself liable for action under any of the cases aforesaid, the Executive Engineer on behalf of the MFDC with the approval of the competent authority mentioned in schedule shall have powers:

1) To determine/terminate the contract as aforesaid (of which termination notice in writing to the contractor under the hand of the MD, MFDC shall be conclusive evidence). Upon such determination, the Earnest Money Deposit, Security Deposit already recovered and performance guarantee, if any under the contract shall be liable to be forfeited and shall be absolutely at the disposal of the MFDC.

2) After giving notice to the contractor to measure up the work of the contractor and to take such whole, or the balance or part thereof, as shall be un-executed out of his hands and to give it to another contractor to complete the work. The contractor, whose contract is determined as above, shall not be allowed to participate in the tendering process for the balance work.

In the event of above courses being adopted by the MD MFDC , the contractor shall have no claim to compensation for any loss sustained by him by reasons of his having purchased or procured any materials or entered into any engagements or made any advances on account or with a view to the execution of the work or the performance of the contract and in case action is taken under any of the provision aforesaid, the contractor shall not be entitled to recover or be paid any sum for any work thereof or actually performed under this contract unless and until the EXECUTIVE ENGINEER has certified in writing the performance of such work and the value payable in respect thereof and he shall only be entitled to be paid the value so certified.

18.14 SUM PAYABLE BY WAY OF COMPENSATION TO BE CONSIDERED IS REASONABLE WITHOUT PREFERENCE TO ACTUAL LOSS:

All sum payable by way of compensation to the MFDC under any of these conditions shall be considered as reasonable compensation without reference to the actual loss or damage sustained and whether or not damage shall have been sustained.

18.15 FINALITY CLAUSE:

It shall be accepted as an inseparable part of the contract that in matters regarding design, materials, workmanship, removal of improper work, interpretation of the contract drawings and contract specifications, mode of procedure and the carryout out of the work the decision of the Executive Engineer which shall be given in writing shall be final and binding on the contractor.

18.16 PAYMENT ON ACCOUNT:

a. During the execution of Dredging work, the contractor may submit Running bill/final bill according to quantity dredged supported by hydrographic survey report and quantity statement duly signed by Executive Engineer, MFDC and the contractor, all other relevant documents. The Executive Engineer shall then arrange to have the bills verified with reference to the measurements recorded / pre or post dredging survey charts and quantity calculations.

b. Payment of the contractor's bills shall be made by the MFDC only in Indian Rupees within 45 working days from the date of submission of the bill and all relevant supporting documents.

c. Payments due to the contractor shall be made by electronic bank transfer / RTGS. Any interim certificate given relating to work done or materials delivered may be modified or corrected by any subsequent interim certificate or by the final certificate. No certificate (s) of the MFDC supporting an interim payment shall itself be conclusive evidence that any work or materials to which it relates is / are in accordance with the same.

d. Should there be a request for extension of date of completion, pending its consideration interim payments may continue to be made as provided herein.

e. TDS at the applicable rates shall be deducted at source from any payment made to the contractor against this contract.

f. Bidder to comply with all the conditions mentioned in the dumping letter issued by MUMBAI PORT AUTHORITY. The final payment will be done only after compliance of all the points mentioned in the letter.

18.17 OVER PAYMENTS AND UNDER PAYMENTS:

a. Whenever any claim whatsoever for the payments of a sum of money to the MFDC arises out of or under this contract against the contractor, the same may be deducted by the MFDC from any sum then due or which at any time thereafter may become due to the contractor under this contract and failing that under any other contract with the MFDC or from any other sum whatsoever due to the contractor from the MFDC or from his security deposit, or he shall pay the claim on demand.

b. MFDC reserves the right to carry out post- payment audit and technical examination of the final bill including all supporting vouchers, abstracts, etc. The authority further reserves the right to enforce recovery of any over payment when detected not- withstanding the fact that the amount of the final bill may be included by one of the parties as an item of dispute before an arbitrator appointed under clause of this contract and notwithstanding the fact that the amount of the final bill figures in the arbitration award.

c. If as a result of such audit and technical examination any over payment is discovered in respect of any work done by the contractor or alleged to have been done by him under contract, it shall be recovered by the Authority from the MFDC by any of all of the methods prescribed above, and if any under payment is discovered, the amount shall be duly paid to the contractor by the MFDC.

d. Provided that the aforesaid right of the Authority to adjust over-payment against amount due to the contractor under any other contract with the Authority shall not extend beyond the period of two years from the date of payment of the final bill or in case the final bill is a MINUS bill, from the date the amount payable by the Contractor under the MINUS final bill is communicated to the contractor.

e. Any sum of money due and payable to the Contractor (including the security deposit returnable to him) under the contract may be withheld or retained by way of lien by the MFDC against any claim of the MFDC or such other person or persons in respect of payment of a sum of money arising out of or under any other contract made by the contractor with the MFDC or with such other person or persons. The sum of money so withheld or retained under this clause by the MFDC will be kept withheld or retained as such by the MFDC or Authority or till his claim arising out of in the same contract or any other contract is either mutually settled or determined by the arbitrator, if the contract is governed by the arbitration clause under the clause or by the competent court hereinafter provided, as the case may be, and the contractor shall have no claim for interest or damages whatsoever on this account or any other ground in respect of any sum of money withheld or retained under this clause.

18.18 PAYMENT OF FINAL BILL:

The final bill shall be submitted by the contractor within one month from the date of completion of the work or of the date the certificate of completion furnished by the EXECUTIVE ENGINEER. No further claim in this regard unless as specified herein under shall be entertained. Payment of final bill shall be made within six months. If there shall be any dispute about any item or items of the work then the undisputed item or items only shall be paid within the said period of six months, as the case may be. The contractor shall submit a list of the disputed items within thirty days from the disallowance thereof and if he fails to do so, his claim shall be deemed to have been fully waived and absolutely extinguished.

18.19 TAX DEDUCTION AT SOURCE:

TDS at the applicable rate as per Income Tax Act/Rules shall be deducted from all the payment/advances made against the contract.

18.20 GST,TAXES, DUTIES AND LEVIES ETC.:

The prices quoted by the bidders shall be inclusive of GST

18.21 LIQUIDATED DAMAGES FOR DELAY / PENALTY FOR DELAY:

Timely completion of all the work/job with provision of required personnel/material/equipment/services covered in the contract as per the timelines stipulated in the work order shall be the essence of the contract.

a. If the contractor fails to maintain the required progress in terms of clause or to complete the work and clear the site on or before the date of completion as per the contract or extended date of completion, he shall, without prejudice to any other right or remedy available under the law to the authority on account of such breach, pay as agreed liquidated damages the amount calculated at the rates stipulated below:

The penalty for delay in completion of work in all respect as specified or within the extended time allowed by EXECUTIVE ENGINEER as per term of contract, hereof the contractor shall pay or allow the board to recover liquidated damages at rate of 0.5 % of the contract value per week or part there of subject to maximum of 10% of the contract value. If the delay persist above 10% of the contract value , then the contract may be cancelled , fortifying EMD , Security Deposit and retention money (if any) followed by black listing of contractor by name and firm.

b. If the contractor does not achieve a particular milestone mentioned in any schedule, or the re-scheduled milestone(s) in terms of Clause, the amount shown against that milestone shall be withheld, to be adjusted against the liquidated damages levied at the final decision on Extension of Time. With-holding of this amount on failure to achieve a milestone, shall be automatic without any notice to the contractor. However, if the contractor catches up with the progress of work on the subsequent milestone(s), the withheld amount shall be released. In case the contractor fails to make up for the delay in subsequent milestone(s), amount mentioned against each milestone missed subsequently also shall be withheld. However, no interest, whatsoever, shall be payable on such withheld amount **OR** if the work remains incomplete after the stipulated date of completion, the EXECUTIVE ENGINEER may withheld 10% of the tendered value of the work from the running payments of the contractor pending final decision of the competent authority mentioned in schedule on the extension of time case. If the competent authority decides to grant extension of time without levy of liquidated damages or levy part of the total liquidated damages specified above then the balance withheld amount after adjusting the amount of the liquidated damages levied by the competent authority will be refunded to the contractor.

18.22 CONTRACTOR'S LIABILITY:

Except as otherwise expressly provided, neither MFDC nor its servants, agents, nominees, shall have any liability or responsibility whatsoever to whomsoever for loss or damage to the equipment and/or loss or damage to the property of Contractor and/or its sub-contractors for injury to, illness, or death of any employee, irrespective of how much loss or damage is caused unless caused by willful and gross negligence of MFDC and/or its servants, agents, nominees, assignees.

The contractor shall indemnify and keep indemnified the Authority against all losses and claims for death, injuries or damage to any person or any property whatsoever which may arise out of or in consequence of the construction and maintenance, of works during the contract period and also against all claims, demands, proceedings, damages, costs, charges and expenses whatsoever in respect of or in relation thereto, and such liabilities shall include claims/compensations of the third party.

The Contractor shall, as may be directed in writing by the EXECUTIVE ENGINEER, re-execute the works lost or damaged, remove from the site any debris and so much of the works as shall have been damaged and carry MFDC 's Plant and Equipment, Material etc. to the MFDC 's store. The cost of such re-execution of the works, removal of damaged works and carrying of Authority's store shall be ascertained in the same manner as for deviations and this shall be ascertained in the same manner as for deviations and be added to the contract sum, provided always that the Contractor shall, at his own cost, repair and make good so much of the loss or damage as has been occasioned by any failure on his part to

perform his obligations under

the contract or not taking precautions to prevent loss or damage or minimize the amount of such loss or damage. Final assessment of loss or damage shall be decided by the EXECUTIVE ENGINEER and his decision shall be final and binding.

The contractor shall take special precautions to see that public places and roads adjacent to contractor's yard are not blocked at any time either by his material or by his workmen. The roads are to be kept always clear and no equipment/materials shall be stacked.

The navigable waterways shall not be blocked by Contractor's vessels. The anchors dropped in the waterways shall be properly marked and removed after done with.

In case of breakdown of any equipment deployed in execution of project, It is the contractor responsibility to make alternative arrangement of the same without affecting the program of the work. The cost incurred in mobilising / demobilising of equipment's on contractor account.

Neither party to the contract shall be liable to the other in respect of any loss or damage which may occur or arise out of "Force Majeure" to the works or any part thereof on to any material or article at site but not incorporated in the works or to any person or anything or material whatsoever or either party provided such a loss or damage could not have been foreseen or avoided by a prudent person and the either party shall bear losses and damages in respect of their respective men and materials. As such liability of either party shall include claims/ compensations of the third party also.

18.23 DUTIES AND POWERS OF THE EXECUTIVE ENGINEER/MFDC REPRESENTATIVE:

a. The duties of the representative of the MFDC is to watch and supervise the works and to test and examine any materials/ parts to be used or workmanship achieved in connection with the works.

b. The MFDC may, from time to time in writing, delegate to his representative any of the powers and authorities, vested in the EXECUTIVE ENGINEER and shall furnish to the contractor a copy of all such written delegation of powers and authorities. Any written instruction or written approval given by the representative of the MECS to the contractor within the terms of such delegation shall bind the contractor and the MFDC as though it has been given by the EXECUTIVE ENGINEER.

c. Failure of the representative of the EXECUTIVE ENGINEER to disapprove any work or materials shall be without prejudice to the power of the EXECUTIVE ENGINEER thereafter to disapprove such work or materials and to order the pulling down, removal or breaking up thereof. The contractor shall, at his own expense, again carry out such works as directed by the EXECUTIVE ENGINEER.

d. If the Contractor is dissatisfied with any decision of the representative of the EXECUTIVE ENGINEER, he will be entitled to refer the matter to the EXECUTIVE ENGINEER who shall thereupon confirm, reverse or vary such decision and the decision of the EXECUTIVE ENGINEER in this regard shall be final and binding on the contractor.

18.24 BANNED OR DELISTED FIRMS:

The firm shall give a declaration that they have not been banned, de-listed or black listed by Government organisation.

If a firm has been banned by Government organisation, this fact must be clearly stated. If the declaration is not given, the bids shall be rejected as non-responsive.

18.25 CLAIMS:

a. The contractor shall send to the EXECUTIVE ENGINEER once in every month on account giving particulars, as full and detailed as possible of all claims, if any, for any additional payment to which the contractor may consider himself entitled and of all extra work or additional work ordered in writing and which has been executed during proceeding month.

b. No claim for payment of any extra work or expenses will be considered which has not been included in such particulars. The EXECUTIVE ENGINEER may consider payment for any such work or expense, where admissible under the terms of the Contract.

c. Any claim which is not notified in two consecutive monthly statements for the two consecutive months shall be deemed to have been waived & extinguished.

18.26 SETTLEMENT OF DISPUTES & ARBITRATION:

a. Except where otherwise provided in the contract, all questions and disputes relating to the meaning of the specifications, design, drawings and instructions here-in-before mentioned and as to the quality of workmanship or materials used on the work or as to any other question, claim, right, matter or thing whatsoever in any way arising out of or relating to the contract, design, drawings, specifications, estimates, instructions, orders or these conditions or otherwise concerning the works or the execution or failure to execute the same whether arising during the progress of the work or after the cancellation, termination, completion or abandonment thereof shall be dealt with as mentioned hereinafter:

1. If the contractor considers any work demanded of him to be outside the requirements of the contract, or disputes any drawings, record or decision given in writing by the EXECUTIVE ENGINEER on any matter in connection with or arising out of the contract or carrying out of the work, to be unacceptable, he shall promptly within 15 days of the receipt of decision from the EXECUTIVE ENGINEER request the Hon. MD, MFDC in writing through the EXECUTIVE ENGINEER for written instruction or decision. Thereupon, the Hon. MD, MFDC shall give his written instructions of the decision within a period of one month from the receipt of the contractor's letter. However, this will not be reason for the stoppage of work.

2. If the Hon. MD, MFDC fails to give his instructions or decision in writing within the aforesaid period or if the contractor is dissatisfied with the instruction or decision of the Hon. MD, MFDC , the contractor may, within 15 days of the receipt of Hon. MD, MFDC 's decision, appeal to next hierarchy who shall afford an opportunity to the contractor to be heard, if the latter so desires, and to offer evidence in support of his appeal. Such decision should be given within 30 days of receipt of contractor's appeal. If the contractor is still dissatisfied with his decision, he/she shall within a period of 30 days from receipt of the decision, give notice to the Hon. MD, MFDC for appointment of arbitrator, failing which the said decision shall be final binding and conclusive and not referable to adjudication by the arbitrator.

b. Except where the decision has become final, binding and conclusive in terms of Sub Para above, disputes or differences shall be referred for adjudication through arbitration by a sole arbitrator appointed by Hon. MD, MFDC .

c. Further, within thirty (30) days of receipt of such notice from either party, the EXECUTIVE ENGINEER shall send to the Contractor a panel of three persons preferably but not necessarily from the approved panel of arbitrators being maintained by Indian Council of Arbitration (ICA) and thereafter the Contractor within fifteen (15) days of receipt of such panel communicate to the EXECUTIVE ENGINEER the name of one of the persons from such panel and such a person shall then be appointed as sole arbitrator by the Hon. MD, MFDC . However, the arbitrator so appointed shall not be an officer or the employee of MFDC provided that if the Contractor fails to communicate the selection of a name out of the panel so forwarded to him by the EXECUTIVE ENGINEER then

after the expiry of the aforesaid stipulated period the Hon. MD, MFDC, shall without delay select one person from the aforesaid panel and appoint him as the sole arbitrator.

d. The arbitrator to whom the matter is originally referred being transferred or vacating his office or being unable to act for any reason, then the Hon. MD, MFDC shall appoint another person to act as sole arbitrator; such person shall be entitled to proceed with the reference from the stage at which it was left by the predecessor.

e. The award of the Arbitrator shall be final and binding. The Arbitrator shall decide in what proportion the Arbitrator's fees, as well as the cost of Arbitration proceeding shall be borne by either party.

f. The Arbitrator with the consent of the parties can enlarge the time, from, time-to-time to make and publish his award.

g. A notice of the existence in question, dispute or difference in connection with the contract unless served by either party within 30 days of the expiry of the defects liability period, failing which all rights and claim under this contract shall be deemed to have been waived and thus forfeited and absolutely barred.

h. The Arbitrator shall give reasons for the award.

i. The work under this Contract shall continue during Arbitration proceedings and no payments due from or payment by the Authority shall be withheld on account of such proceedings except to the extent which may be in dispute.

j. The Arbitration and Conciliation Act 1996 with any statutory modifications or re-enactment thereof and the rules made there under and being in force shall apply to the Arbitration proceedings under this clause.

k. The parties to the agreement hereby undertake to have recourse only to arbitration proceedings under for Arbitration Act 1996 and the venue of the arbitration proceeding shall be Mumbai and the parties will not have recourse to Civil Court to settle any of their disputes arising out of this agreement except through arbitration.

NOTE:

In case of contract with another Public Sector Undertaking, following Arbitration Clause shall apply: "Except as otherwise provided, in case of a contract with a public Sector Undertaking if at any time any question dispute or difference whatsoever arises between the parties upon or in relation to, or in connection with this agreement, the same shall be settled in terms of the Ministry of Industry, Department of Public Enterprises O.M No. 3/5/93-PMA dt.30.06.93 or any modifications / amendments thereof. "The arbitrator shall have the power to enlarge the term to publish the award with the consent of the parties provided always that the commencement or continuation of the arbitration proceeding shall not result in cessation or suspension of any of other rights and obligations of the parties of any payments due to them hereunder.

18.27 TERMINATION OF CONTRACT ON DEATH:

If the Contractor is an individual or a proprietary concern and the individual or the proprietor dies, or if the Contractor is a partnership concern and one of the partners dies, then, unless the EXECUTIVE ENGINEER is satisfied that the legal representatives of the individual contractor or of the proprietor of the proprietary concern and in the case of partnership, the surviving partners are capable of carrying out and completing the contract, the EXECUTIVE ENGINEER shall be entitled to terminate the Contract as to its incomplete part without being in anyway liable to payment of any compensation whatsoever on any account to the estate of the deceased Contractor and/or to the surviving partners of the Contractor's firm on account of termination of the Contract. The decision of the EXECUTIVE ENGINEER that the legal representatives of the deceased contractor or the surviving partners of the Contractor's firm cannot carry out and complete the works under the contract shall be final and binding on the parties. In the event of such termination, the shall not hold the estate of the deceased Contractor and/or the surviving partners

of the Contractor's firm liable for damages

for not completing the contract. Provided that the power of the EXECUTIVE ENGINEER of such termination of contract shall be without prejudice to any other right or remedy which shall have accrued or shall accrue to him under the contract.

18.28 FORECLOSURE OF CONTRACT IN FULL OR IN PART DUE TO ABANDONEMENT OR REDUCTION IN SCOPE OF WORK:

If at any time after acceptance of the tender the decides to abandon or reduce the scope of the works for reason whatsoever and hence does not require the whole or any part of the works to be carried out, the EXECUTIVE ENGINEER with the prior approval of competent authority mentioned in schedule shall give notice in writing to that effect to the contractor and the contractor shall have no claim to any payment of compensation or otherwise whatsoever, on account of any profit or advantage which he might have derived from the execution of the works in full but which he could not derive in consequence of the fore closure of the whole or part of the works.

18.29 SUSPENSION OF WORKS:

a. The contractor shall on the receipt of order of the EXECUTIVE ENGINEER (whose decision shall be final and binding on the contractor) suspend the progress of the works or any part thereof for such time or times and in such manner as the EXECUTIVE ENGINEER may consider necessary.

b. The suspension of the work can be done by EXECUTIVE ENGINEER for any of the following reasons:

1. On account of any default on the part of the contractor or
2. For proper execution of the works or part thereof for the reasons other than the default of the contractor or
3. for the safety of the works or part thereof.

c. The contractor shall during the suspension period, properly protect and secure the works to the extent necessary and carry out the instructions given in that behalf by the EXECUTIVE ENGINEER.

d. If the suspension is ordered for the reasons under the clauses above, the contractor shall be entitled to the extension of time equal to the period of every such suspension plus 25% for the completion of the item or group of items of work for which a separate period of completion is specified in the contract and of which suspended work forms a part.

18.30 INSURANCE:

Contractor shall take out necessary Insurance Policy / Policies (viz. Contractor's All Risks Insurance Policy. Erection All Risks Insurance Policy etc. as decided by the Directorate of Insurance) so as to provide adequate insurance cover for execution of the awarded contract work for total contract value and complete contract period compulsorily from the : Directorate of Insurance, Maharashtra State, Mumbai " Its postal address for correspondence is "264, MHADA, First Floor, Opp. Kalanagar, Bandra (E), Mumbai-400 051". (Telephone Nos. 2659 0403/ 2659 0690 and Fax Nos. 2659 2461/ 2659 0403) before commencement of the work. Similarly all workmen's appointed to complete the contract work are required to be insured under workmen's compensation Insurance Policy. Insurance Policy / Policies taken out from any other Company will not be accepted. If any Contractor has effected Insurance with any Insurance Company, the same will not be accepted and the amount of premium calculated by the Government Insurance fund will be recovered directly from the amount payable to the Contractor for the executed contract work and paid to the Directorate of Insurance Fund, Maharashtra State, Mumbai. The Director of Insurance reserves the right to distribute the risks of insurance among the other insurers.

The insurance coverage shall be 1% of cost of work. Before commencing execution of the work, the Contractor shall without in any way limiting his obligations and responsibilities under this condition, insure against any damage, loss or injury which may occur to any person / property (excluding that of

the but including the building rented to the contractor, if any, wholly or in part and any part of which is used in part and any part of which is used by him for storing combustible materials, if any) public liability by arising out of the carrying out of the contract. For this purpose the contractor shall take out, pay all costs and maintain throughout the period of his contract public liability with the following coverage:

a. The Contractor shall prove to the EXECUTIVE ENGINEER from time to time that he has taken out all the insurance policies referred to above and has paid the necessary premiums for keeping the policies alive till expiry of the Defects Liability Period.

b. The Contractor shall ensure that similar insurance policies are taken out by his sub-contractor (if any) and shall be responsible for any claims or losses to the resulting from their failure to obtain adequate insurance protection in connection thereof. The Contractor shall produce or cause to be produced by his sub-contractors (if any) as the case may be, relevant, policy or policies and premium receipt as and when required by the EXECUTIVE ENGINEER.

c. If the contractor and/or his sub- contractor (if any) shall fail to effect and keep in force the insurance referred to above or any other insurance which he/they may be required to effect under the term of the Contract then and in any such case the may, without being bound to effect and keep in force any such insurance and pay such premium or premiums as may be necessary for that purpose and from time to time deduct the amount so paid by the from any moneys due or which may become due to the contractor or recover the same as a debt due from the contractor.

d. The contractor shall at his own expense arrange for the safety provisions as required in respect of the works covered under this contract as per the instruction of EXECUTIVE ENGINEER. In case, the contractor fails to comply with the provisions of the safety the EXECUTIVE ENGINEER shall be entitled to and make the necessary arrangements at the risk and cost of the contractor. This will, however, not absolve the Contractor of his overall responsibility to execute the works under the contract. If pays the insurance, then shall deduct amount equivalent to 1% of contract value or actual premium paid, whichever is higher.

18.31 LIABILITY FOR DAMAGE, DEFECT, IMPERFECTIONS AND RECTIFICATION THERE OF:

1. If the contractor or his labour or his sub-contractor, injure, destroy or damage, battery, solar panel, lighting system, navigational aids, road, fence, enclosures, water pipe, cables, buildings, drains, electricity or telephone posts, wires, trees, grass line, cultivated land in the area in which they may be working or in the area contiguous to the premises on which the work or any part of it is being executed or if any damage is caused to any item belonging to or to any person during the progress of work, the Contractor shall upon receipt of a notice in writing on that behalf from the EXECUTIVE ENGINEER, make good the same at his cost.

2. If it appears to the EXECUTIVE ENGINEER or his representative at any time during the progress of work that any work has been executed with unsound, imperfect or unskilled workmanship or that any materials or articles provided by the Contractor for execution of the work are unsound or of a quality inferior to that contracted for, or otherwise not in accordance with the Contract, or that any defect, shrinkage or other faults found in the work arising out of defective design or defective/ improper materials or workmanship, the Contractor shall, upon receipt of a notice in writing in that behalf from the EXECUTIVE ENGINEER forthwith rectify or remove and reconstruct the work so specified in whole or in part, as the case may be, and/or remove the materials/articles so specified and provide other proper and suitable materials at his expense.

3. All damages caused by accidents or carelessness of the contractor or any of his employees or any property belonging to the is wasted or is misused by the contractor or any of his employees shall be to the account of the contractor, who shall make good the loss.

18.32 FORCE MAJEURE:

a. The term Force Majeure shall herein mean Riots (other than among the contractor's employees), Civil Commotion (to the extent no insurable), war (whether declared or not), invasion, act of foreign enemies, hostilities, civil war, rebellion, revolution, insurrection, military or usurped power, damage from aircraft, nuclear fission, acts of God, such as earthquake, lightning, unprecedented floods, fires not caused by contractor's negligence and other such causes over which the contractor has no control and are accepted as such by the EXECUTIVE ENGINEER, whose decision shall be final and binding. In the event of either party being rendered unable by Force Majeure to perform any obligation required to be performed by them under this contract, the relative obligation of the party affected by such Force Majeure shall be treated as suspended for the period during which such Force Majeure cause lasts, provided the party allowing that it has been rendered unable as aforesaid, thereby shall notify within 15 days of the alleged beginning and ending thereof giving full particulars and satisfactory evidence in support of such cause.

b. For delays arising out of Force Majeure, the bidder shall not claim extension in completion date for a period exceeding the period of delay attributable to the causes of Force Majeure and neither the Authority nor the bidder shall be liable to pay extra costs provided it is mutually established that Force Majeure conditions did actually exist.

c. If any of the Force Majeure conditions exists in the places of operation of the bidder even at the time of submission bid, he shall categorically specify in his bid and state whether they have been taken into consideration in their quotations.

In the event of either of the parties being rendered unable, wholly or in part by force majeure to carry out its obligations under the agreement when entered into, it is agreed that on such party giving notice and full particulars of such force majeure in writing or by telegram / telex / fax to other party as soon as possible (within maximum one week), after the occurrence of the cause relied on then, the obligations of the party giving such notice with proper documentary evidence so far as they are affected by such force majeure, shall be suspended during the continuance of any inability so caused but for no longer period, and such cause as far as possible be remedied with all reasonable effort.

The contract arising out of this tender shall be interpreted in accordance with and governed by the laws of India. The personnel employed by the successful bidder shall be the sole responsibility and liability of the successful bidder and also, expenses in connection with their employment shall be borne by the successful bidder. shall not bear any responsibility or have liability whatsoever arising out of this contract, including the liability under the Workmen's Compensation Act or any other Act (s) applicable. The successful bidder shall comply with provisions of various labour laws enacted by the Central /State Government, as amended from time to time.

All statutory requirements / obligations there under, as may be applicable to the contract labour, will have to be adhered to by the successful bidder and any failure on his part on this account shall be the responsibility of the successful bidder. The successful bidder will abide by rules, regulations, by-laws, and statutes, imposed by the Government and other local authorities etc. The Successful bidder has to ensure that the payment of wages / salaries / allowances / overtime etc. shall be subject to the minimum wage rates notified by the State Govt. from time to time. The payment of wages shall be made directly by the successful bidder to his staff and not through vendors or any other party or person. No amount shall be deducted from the wages of the workmen by way of commission of any nature whatsoever, except for statutory deductions.

18.33 DISCREPANCIES AND ADJUSTMENT OF ERRORS:

a. Detailed drawings shall be followed in preference to small-scale drawings and figured dimensions in preference to scaled dimensions. The case of discrepancy between the Schedule of Quantities and prices, the Specifications and/ or the drawings, the following order of precedence shall be observed : -

i. Description in the Schedule of Quantities and Prices.
ii. Relevant Specification and Special Condition, if any.
iii. Drawings.
iv. Indian Standard Specification of BIS.

b. The contractor shall study and compare the drawings, specification and other relevant information given to him by the EXECUTIVE ENGINEER and shall report in writing to him any discrepancy and inconsistency which he notes. The decision of the EXECUTIVE ENGINEER regarding the correct intent and meaning of the drawings and specifications shall be final and binding.

c. Any error in description, quantity or price in Schedule of Quantities and Prices or any omission there from shall not vitiate the Contract or release the Contractor from the execution of the whole or any part of the work(s) comprised therein according to drawings and specifications or from any of his obligations under the contract.

If on check, there is difference in the amount worked out by contractor in the schedule of quantities and prices and General summary the same shall be adjusted in accordance with the following rules:

1. In the event of error/discrepancy occurring in the rates written in figures and words, then the rate which corresponds with the amount worked out by the contractor shall, unless otherwise proved, be taken as correct. If the amount of an item is not worked out by the contractor or it does not correspond with the rate written either in figures or in words, then the rate quoted by the contractor in words shall be taken as correct. When the rate quoted by the contractor in figures and words tally, but the amount is not worked out correctly, the rate quoted by the contractor will, unless or otherwise proved, be taken as correct.

2. All errors in totaling in the amount column and in carrying forward totals shall be corrected.

3. The totals of various sections of schedule of quantities and price amended shall be carried over to the General Summary and the tendered sum amended accordingly. The tendered sum so altered shall, for the purpose of tender, be substituted for the sum originally tendered and considered for acceptance instead of the original sum quoted by the tenderer. Any rounding off of quantities or in sections of schedule of quantities and prices or in General summary by the tenderer shall be ignored.

18.34 INSTRUCTIONS AND NOTICE:

a. Except as otherwise provided in this contract, all notices to be given on behalf of the and all other actions to be taken on its behalf may be given or taken by the EXECUTIVE ENGINEER or any officer for the time being entrusted with the functions, duties and powers of EXECUTIVE ENGINEER.

b. All instructions, notices and communications etc. under the contract shall be given in writing and any such oral orders / instructions given shall be confirmed in writing and no such communication which is not given or confirmed in writing shall be valid.

c. All instructions, notices and communications shall be deemed to have been duly given or sent to the contractor, if delivered to the contractor, his authorized agent, or left at, or posted to the address given by the contractor or his authorized agent or to the last known place of abode or business of the contractor or his agent of services by post shall be deemed to have been served on the date when in the ordinary course of post these would have been delivered to him and in other cases on the day on which the same were so delivered or left.

d. The EXECUTIVE ENGINEER may communicate or confirm the instructions to the contractor in respect of the execution of work through a “Site Order Book "maintained in the office of the contractor.

e. EXECUTIVE ENGINEER and the contractor or his authorized representative shall confirm receipt of such instructions by signing the relevant entries in this book. If required by the Contractor, he shall be furnished a certified true copy of such instruction(s).

f. The “Hindrance Register” may be maintained at the site of work, where any hindrance which comes to the notice of the representative of the EXECUTIVE ENGINEER shall be recorded and immediately a report will be made to the EXECUTIVE ENGINEER within a week. The EXECUTIVE ENGINEER shall review the Hindrance Register at least once in a month.

g. Subject to the availability of any item(s), plant, equipment and machinery at the written request of the contractor, may issue to the contractor on hire for being deployed on the work contracted for, at pre-determined rates, terms and conditions at the sole discretion of the EXECUTIVE ENGINEER.

18.35 CHANGES IN THE CONSTITUTION OF THE FIRM TO BE INTIMATED:

Prior approval in writing of the EXECUTIVE ENGINEER shall be obtained before any change is made in the constitution of the firm.

18.36 FACILITIES TO OTHER CONTRACTORS:

The contractors shall, in accordance with the requirements of the work as decided by the EXECUTIVE ENGINEER, afford all reasonable facilities to other contractors engaged contemporaneously on separate contracts and for departmental labour and labour of any other agency properly authorized by Authority or any statutory body which may be employed at the site for execution of any work not included in the contract which may enter into in connection with or ancillary to the works. In all matters of conflict of interest, the EXECUTIVE ENGINEER shall direct what compromise should be made and his decision shall be final and binding on the parties.

18.37 CONTRACTOR’S SUPERVISION:

a. The contractor shall either himself supervise the execution of the works or shall appoint at his own expense, a qualified and experienced Marine Engineer as his accredited agent approved by the EXECUTIVE ENGINEER, if contractor has himself not sufficient knowledge or experience to be capable of receiving instruction or cannot give his full attention to the works. The contractor or his agent shall be present at the site(s) and shall supervise the execution of the works with such additional assistance in each trade, as the work involved shall require and considered essential by the EXECUTIVE ENGINEER. Further the directions/instructions given by the EXECUTIVE ENGINEER to the contractor's agent shall be considered to have the same force as if these had been given to the contractor himself.

b. If the contractor fails to appoint a suitable agent as directed by the EXECUTIVE ENGINEER, the EXECUTIVE ENGINEER shall have full powers to suspend the execution of the works until such date as a suitable agent is appointed by the contractor and takes over the charge of supervision of the work. For any such suspension, the contractor shall be held responsible for delay so caused to the work.

18.38 MATERIALS:

a. The contractor shall at his own expenses provide / arrange all materials required for the bona-fide use on work under the contract.

b. All materials/parts to be provided by the contractor shall be in conformity with the specifications laid down in the contract and the contractor shall furnish from time to time proof and samples, at his own cost, the materials/parts as may be specified by the EXECUTIVE ENGINEER. Further the EXECUTIVE

ENGINEER shall also have powers to have such tests, in addition to those specified in the contract, as may be required and the contractor shall provide all facilities to carry out the same. The cost of materials/parts consumed in such tests and also the

expenses incurred thereon including the cost of the testing charges, shall be borne by the contractor in all cases and also where such tests which are in addition to those provided in the contract disclose that the materials are in conformity with the provisions of the contract.

c. The EXECUTIVE ENGINEER or his representative shall be entitled at any time to inspect and examine any materials/parts intended to be used in the works, either on the site or at factory or workshop or other place(s) where such materials are assembled, fabricated, manufactured or any place where these are lying or from where these are being obtained. For this, purpose, the contractor shall afford such facilities as may be required for such inspection and examination.

18.39 PLANT AND EQUIPMENT:

The contractor shall indemnify , its representatives or its employees against any action, claim or proceeding relating to infringement or use of any patent or design or any alleged patent or design rights and shall pay any royalties or other charges which may be payable in respect of any article or material or part thereof included in the contract. In the event of any claim being made or action being brought against the or any agent, servant or employee of the in respect of any such materials as aforesaid the contractor shall immediately be notified thereof. Provided that such indemnification shall not apply when such infringement has taken place in complying with the specific directions issued by the Authority but the contractor shall pay any royalties or other charges payable in respect of any such use, the amount so paid being reimbursement to the contractor only if the use was the result of any drawings and or specifications issued after submission of the tender

18.40 MATERIALSOBTAINED FROM EXCAVATION SUCH AS COINS, FOSSILS, AND ANTIQUE ETC.:

a. Materials of any kind obtained from excavation on the site shall remain the property of the and shall be disposed of as directed by the EXECUTIVE ENGINEER.

b. However if any of the materials thus obtained from excavation on the site is such as can be used in the execution of the work under the contract, the contractor will be allowed to use the same free of cost (except that any amount of royalty paid for in this regard by the shall be recoverable from the contractor) for the aforesaid purpose provided the same is found suitable and is approved by the EXECUTIVE ENGINEER.

c. Fossils, coins, articles of value, structures and other remains or things of geological or archaeological interest discovered on the site shall be the absolute property of the . The contractor shall take reasonable precautions to prevent his labour or any other person from removing or damaging any such article or thing and shall acquaint the EXECUTIVE ENGINEER with such discovery and carryout the EXECUTIVE ENGINEER's directions as to the disposal of the same at the expense of .

18.41 LABOUR:

a. The contractor shall employ labour in sufficient numbers to maintain the required rate of progress and of quality to ensure workmanship of the degree specified in the contract and to the satisfaction of the EXECUTIVE ENGINEER. The Contractor shall not employ in connection with the works any person who has not completed eighteen years of age the minimum age specified in Indian Labour Law.

b. The Contractor shall pay to labourer employed by him either directly or through sub-contractors wages not less than wages as defined in Minimum Wages Act 1948 and Contract Labour (Regulation and Abolition) Act 1970 amended from time to time and rules framed there-under and other labour laws affecting contract labour that may be brought in force from time to time.

c. The Contractor shall also comply with the provisions of all Acts, Laws, any Regulation or Bye Laws of

any Local or other Statutory Authority applicable in relation to the execution of works such as mentioned herewith or any other amended or formulated later:

1. Payment of Wages Act, 1936 (Amended)
2. Minimum Wages Act, 1948 (Amended).
3. The Contract Labour (Regulation & Abolition) Act, 1970 with Rules framed there under as amended.
4. Workmen Compensation Act, 1923 as amended by Amendment Act no.65 of 1976.
5. Employer's Liability Act 1938 (Amended)
6. Maternity Benefit Act. 1961 (Amended)
7. The Industrial Employment (Standing orders) Act 1946 (Amended).
8. The Industrial Disputes Act. 1947 (Amended)
9. Payment of Bonus Act.1965 and Amended Act No. 43 of 1977 and No. 48 of 1978 and any amended thereof
10. The Personal Injuries (Compensation Insurance) Act 1963 and any modifications thereof and rules made there under from time to time.

The Contractor shall take into account all the above and financial liabilities in his quoted rates and nothing extra, whatsoever, shall be payable to him on this account.

The contractor should be aware of all the Acts/Labour Laws and should follow diligently on the work. The contractor shall be fully and personally responsible for the violation of any Act/Labour Law.

d. The Contractor shall be liable to pay his contribution and the employees contribution to the State Insurance Scheme in respect of all labour employed by him for the execution of the contract, in accordance with the provision of "the Employees State insurance Act 1948" as amended from time to time. In case the Contractor fails to submit full details of his account of labour employed and the contribution payable, the EXECUTIVE ENGINEER shall recover from the running bills the contribution amount as assessed by him. The amount so recovered shall be adjusted against the actual contribution payable for Employees State Insurance.

e. The EXECUTIVE ENGINEER shall on a report having been made by an inspecting officer as defined in the Contract Labour (Regulation and Abolition) Act and Rules or on his own in his capacity as Principal Employer, have the power to deduct from the amount due to the contractor any sum required for making good the loss suffered by worker(s) by reason of non-fulfilment of the conditions of the Contract for the benefit of Workers, non-payment of wages or on account of deduction made from the wages of the workers which are not justified by the terms of the contract or non- observance of the said Act and Rules framed there under with amendments made from time to time.

f. The Contractor shall indemnify against any payments to be made under and for observance of the Regulation Laws, Rules as stipulated in Clauses above without prejudice to his right to claim indemnity from his sub-contractors. In the event of the contractor's failure to comply with the provisions of all the Acts/Laws stipulated in Clauses or in the event of decree or award or order against the contractor having been received from the competent authority on account of any default or breach or in connection with any of the provisions of the Acts/Laws/Rules mentioned in Sub-Clauses above, the EXECUTIVE ENGINEER without prejudice to any other right or remedy under the contract shall be empowered to deduct such sum or sums from the Bill of the contractor or from his security deposit or from other payment due under this contract or any other contract to satisfy within a reasonable time the provisions of the various Acts/Laws/Rules/Codes as mentioned under Sub-Clauses above, on the part of the contractor under the contract on behalf of and at the expenses of the contractor and make payment and /or provide

amenities/ facilities/services accordingly. In this regard, the decision of the EXECUTIVE ENGINEER shall be conclusive and binding on the contractor.

g. The Contractor shall at his own expenses comply with or cause to be complied with the Provisions/ Rules provided for welfare and health of Contract Labour in the Contract Labour (Regulation and Abolition) Act and other relevant Acts and Rules framed there under or any other instructions issued by the in this regard for the protection of health and for making sanitary arrangements for workers employed directly or indirectly on the works. In case the contractor fails to make arrangements as aforesaid, the EXECUTIVE ENGINEER shall be entitled to do so and recover the cost thereof from the contractor.

h. The Contractor shall at his own expense arrange for the safety or as required by the EXECUTIVE ENGINEER, in respect of all labour directly or indirectly employed for performance of the Works and shall provide all facilities in connection therewith. In case the contractor fails to make arrangements and provide necessary facilities as aforesaid, the EXECUTIVE ENGINEER shall be entitled to do so and recover the cost thereof from the Contractor. But this will not absolve the contractor of his responsibility or otherwise thereof.

i. Failure to comply with "Provisions/Rules made for Welfare and Health of Contract Labour" Safety Manual, or the provisions relating to report on accidents and grant of maternity benefits to female workers and the relevant Acts/Rules referred in clause above shall make the contractor liable to pay to the as liquidated damages any amount as may be decided by for each default or materially incorrect statement. The decision of the EXECUTIVE ENGINEER in such matters based on reports from the inspecting Officers as defined in the relevant Acts and Rules as referred in clauses above shall be final and binding and deductions for recovery of such liquidated damages may be made from any amount payable to the contractor. In the event of any injury, disability or death of any workmen in or about the work employed by the contractor either directly or through his sub-contractor, contractor shall at all-time indemnify against all claims, damages and compensation under the Workmen Compensation Act. 1923 as amended from time to time or in other Law for the time being in force and Rules there-under from time to time and also against all costs, charges and expenses of any smooth action by proceedings arising out of such accidents or injury, disability or death of a workmen and against all sum or sums which may with the consent of the contractor be paid to compromise or compound any claim in this regard. If any award, decree or order is passed against the contractor for recovery of any compensation under the Workmen Compensation Act, 1923, for any injury, disability or death of a workman by any competent court, the said sum or sums shall be deducted by the EXECUTIVE ENGINEER from any sum then due or that may become due to the contractor or from his security deposit or sale thereof in full or part under the contract or any other contract with the towards fulfilment of the said decree, award or orders.

j. The contractor shall have no right to claim payments/claims whatsoever on account of his compliance with his obligations under this clause and Labour Regulations.

k. The contractor shall not otherwise than in accordance with the statutes ordinance and Government Regulations or orders for the time being in force import, sell, give, barter or otherwise dispose of any alcoholic liquor or drugs to permit or suffer any such import, sale, gift, barter or disposal by his sub-contractor, agent or employees.

l. The contractor shall not give, barter or otherwise dispose of to any person or persons any arms or ammunition of any kind or permit to suffer the same as aforesaid.

m. The Contractor shall employ for the execution of the works only such persons as are skilled and experienced in their respective trades and EXECUTIVE ENGINEER shall be at liberty to object to and require the contractor to remove from the works any persons employed by the Contractor for the execution of the works who, in the opinion of the EXECUTIVE ENGINEER, misconduct himself or is incompetent or negligent in the proper performance of his duties. The contractor shall forthwith comply with such requisition and such person shall not be again employed upon the works without permission of the EXECUTIVE ENGINEER.

18.42 WATCH & WARD AND LIGHTING:

The Contractor shall provide and maintain at his expense all lights, guards, fencing and watch & ward when and where necessary or as required by the EXECUTIVE ENGINEER for the protection of the works or for the safety and convenience of those employed on the works or the public.

18.43 LAWS GOVERNING THE CONTRACT:

The Courts at Mumbai **o**nly shall have the jurisdiction for filing the award of the arbitration and for any other judicial proceedings.

18.44 ASSIGNMENT AND SUB-LETTING:

The Contractor shall not sub-let, transfer or assign the whole or any part of the work under the contract provided that the EXECUTIVE ENGINEER may at his discretion, approve and authorize the Contractor to sub-let any part of the work, which in his opinion, is not substantial, after the contractor submits to him in writing the details of the part of the work(s) or trade proposed to be sublet, the name of the sub-contractor thereof together with his past experience in the said work/trade and the form of the proposed sub-contract. Nevertheless any such approval or authorization by the EXECUTIVE ENGINEER shall not relieve the contractor from his any or all liabilities, obligations, duties and responsibilities under the contract. The contractor shall also be fully responsible to the Authority for all the acts and omissions of the sub-contractor, his employees and agents or persons directly employed by the contractor. However, the employment of piece rate works shall not be construed as sub-letting.

18.45 ARBITRATION:

All disputes and differences whatsoever arising between the parties out of or relating to the dredging work , meaning and operation or effect of this Tender and consequent Contract or the breach thereof shall be mutually settled. However, in case no such mutual settlement is arrived at, the matter shall be settled by arbitration in accordance with the provision of arbitration of the Indian Arbitration & Conciliation Act, 1996 and any statutory modification or re-enactment thereof and the rules made there under and for the time being in force. The venue of arbitration shall be at Mumbai unless otherwise agreed by .

18.46 **WORK SCHEDULE**:

The Contractor shall submit to the EXECUTIVE ENGINEER for his approval, within one week after receipt of the acceptance letter of his tender, a detailed programme for execution of work in the form of detailed Bar Charts, both in triplicate. The Bar chart shall include the various activities involved in the execution of the Works and their principal quantities and their interdependencies and the time required for completion of the different activities. The Contractor shall whenever required by the EXECUTIVE ENGINEER or EXECUTIVE ENGINEER`s Representative, also provide in writing for his information a general description of the arrangements and methods which the Contractor proposes to adopt for the execution of the Works.

The contractor shall whenever required by the EXECUTIVE ENGINEER provide in writing for his information the general description of the arrangements, methods of carrying out work and work procedures which the contractor proposes to adopt or use.

18.47 PERIOD OF VALIDITY OF BIDS:

18.47.1 The Bids shall remain valid and open for acceptance for a period of 75 days from the date of opening of Price Bid.

18.47.2 Notwithstanding para No.18.47.1 above, reserves his right to extend the period of validity for a specific time. The request and the response thereto shall be made in writing on e-Tendering website and by Fax or e-mail. The Tenderer will have an option to refuse the request without forfeiting his Bid security. However, in the event of the Tenderer agreeing to the request, he will not be permitted to modify his Tender. In the event of the Tenderer agreeing to the extension, the Tenderer shall correspondingly extend the validity of his bid security.

18.48 APPLICABLE LAW:

The contract arising out of this tender shall be interpreted in accordance with the Law of India.

18.49 MISCELLANEOUS:

, in its sole discretion and without incurring any obligation or liability, reserves the right, at any time to Suspend and/or cancel the Selection Process and/or amend and/or supplement the Selection Process or modify the dates or other terms and conditions relating thereto Consult with any Applicant in order to receive clarification or further information; Retain any information and/or evidence submitted to the Authority by, on behalf of and/or in relation to any bidder; **and/or** Independently verify, disqualify, reject and/or accept any and all submissions or other information and/or evidence submitted by or on behalf of any bidder.

18.50 SPECIAL CONDITIONS OF DREDGING OPERATION:

a. No mobilization or demobilization charges will be paid extra to the contractor.

b. No shifting charges will be paid to the contractor for shifting the dredger and its accessories from one site to another site or from one area / canal to another area / canal specified above.

c. Normal barge and vessels/crafts movement in the channel shall not be interrupted by the dredging operation.

d. No idle time charges for monsoon period (where applicable) will be paid to the contractor on any account.

e. The contractor shall arrange the transits, buoys, lights, mooring etc. at their own cost as required for dredging and also for cautioning other vessels in the waterway.

f. The Contractor shall provide the boat from shore to dredger and back to shore during inspection & supervision by the EXECUTIVE ENGINEER or his representative.

g. Contractor is fully responsible for solving the disputes with the local fishermen w.r.t. removal of fishing nets, stakes, from the dredged channel. Similarly, all disputes with regard to the dumping of dredge spoil, any prior permission or arrangement on deemed fit for avoiding bank erosion or damage to any property or agriculture. shall not be responsible for solving the disputes related to execution of the dredging. However, on request may extend the assistance for solving the issues only through the concerned official/dept. of the state or local bodies.

h. Contractor shall be responsible for obtaining the dumping area permission from Mumbai Port Trust consultation with . Any arrangement with respect to the bund around the identified dumping area is to be made by the contractor at his cost. Any dispute with local, land owner on the dumping of dredging spoil to be sorted out by the contractor.

i. The contractor may change the type, numbers, size and make of dredgers indicated in the proposal with the prior written approval of the EXECUTIVE ENGINEER with the sole objective to increase the dredging capacity & improving the progress.

j. If the dredger goes out of order the contractor should arrange for replacement of the same within 48 hours, with a similar capacity and suitable dredger with the approval of EXECUTIVE ENGINEER to ensure continuity of work.

k. Authority may engage the agency on behalf of the contractor as per the state/central Govt. organization on pollution or coastal management authority to carry out the test of the dredged material at regular interval for the regulating the dumping activities. In case of any adverse report, contractor may comply the instruction of EXECUTIVE ENGINEER.

l. During execution of the work, if any environmental degradation occur, consequent on dumping of dredged material, re-conveyance of the material shall be done by the contractor this cost, without claiming additional payment from .

m. If the dredging is stopped continuously for more than 3 days due to law and order, contractor has to report to EXECUTIVE ENGINEER the same and take actions mutually in accordance with prevailing local laws for removal of such problem and proceeding further with the work to mutual benefit.

n. Any charge incurred on testing of the dredged material, testing / analysing the quality of water for adopting environmental safe guards, minimizing detrimental impacts, enhancing the beneficial aspects of the project and for effective management of the environmental resources affected by the project shall be met by the contractor. No additional charges on any account shall be payable by .

18.51. Any other terms & conditions that may be essential and acceptable by both the parties, would be added afterwards and an agreement may be executed &such T & C would always prevail over the Terms & Conditions of the uploaded tender.

**** Company/firm/dredging contractor will be responsible for keeping logbook for movement off all the vessels which are engaged in dredging / dumping. The logbook shall include but to be limited to the name vessel, GPS position of the vessel, time of commencement time of completion of dumping and quantity of dredged and dumped material.**

*** The dredging report to be submitted after every 15 days in order to continue the dredging and dumping activity.**

Sd/-
Executive Engineer,
Maharashtra Fisheries Development Corporation, Mumbai

GENERAL CONDITIONS OF CONTRACT

Clause 1a:- DEFINITIONS:

Unless excluded by or repugnant to the context thereof:

The expression **"Government"** as used in the tender documents shall means the Relevant Department of the Government of Maharashtra.

The expression **"The Managing Director"** as used anywhere in the tender papers shall mean Managing Director Maharashtra Fisheries Development Corporation.

The expression **"Marine Engineer & Chief Surveyor"** as used in the tender papers shall mean the Marine Engineer & Chief Surveyor of Maharashtra Fisheries Development Corporation under whose control the work lies for the time being.

The expression **"Contractor"** as used in the tender papers shall mean the successful tenderer that is the tenderer whose tender has been accepted, and who has been authorized to proceed with the work.

The expression **"Contract"** used in the tender papers shall mean the deed of contract together with or its original accompaniment and those later incorporated in it by mutual consent.

Engineer In Charge :- Engineer / Surveyor who is appointed by Marine Engineer & Chief Surveyor to inspect the progress of work to carry out measurement works

Security deposit

PWD Resolutions CAT/1087/ CR- 94 / Bldg. 2 Dt.14.6.89

Clause 1:- The person/persons whose tender may be accepted thereinafter called the contractor, which expressions shall unless excluded by or repugnant to the context include his heirs. Executors, administrators, and assigns shall (A) within ten days (which may be extended by the Managing Director or his representative Concerned upto 15 days if the Managing Director thinks fit to do so) of the receipt by him of the notification of the acceptance of his tender deposit with the Managing Director in cash or Government securities endorsed to the Managing Director Maharashtra Fisheries Development Corporation of sum sufficient which will made up the full security deposit specified in the tender or (B) Permit Maharashtra Fisheries Development Corporation at the time of making any payment to him for work done under the contract to deduct such as will amount to ***One (1)** percent of all moneys so payable such deductions to be held by Maharashtra Fisheries Development Corporation by way of security deposit) provided always that in the event of the contractor depositing a lump sum by way of security deposit as contemplated at above, then and in such case, if the sum so deposited shall not amount to * **One (1)** percent of the total estimated cost of the work, it shall be lawful for Maharashtra Fisheries Development Corporation at the time of making any payment to the contractor for work done under the contract to make up the full amount of

***One (1)** percent by deducting a sufficient sum from every such payment as last aforesaid until the full amount of the security deposit is made up. All compensation or other sums of money payable by the contractor to Maharashtra Fisheries Development Corporation under the terms of his contract may be deducted from or paid by the sale of sufficient part of his security deposit or from the interest arising there from, or from any sums which may be due or may become due by Maharashtra Fisheries Development Corporation to the contractor under any other contract or transaction of any nature on any account whatsoever and in the

event of his security deposit being reduced
by reason of any such deduction or sale as aforesaid, the

contractor shall, within ten days thereafter, make good in cash or DD endorsed as aforesaid any sum or sums which may have been deducted from, or raised by sale of his security deposit or any part thereof. The security deposit referred to when paid in cash may, at the cost of the depositor, be converted into interest bearing securities provided that the depositor has expressly desired this in writing.

The security deposit will not be accepted in forms of insurance company bonds as per Government orders contained in No.CCM/PWD/4250 DATED 27/12/1956.

If the amount of security deposit to be paid in lump sum within the period specified at (A) above is not paid, the tender/contract already accepted shall be considered as cancelled and legal steps taken against the contractor for recovery of the amounts. The amount of the security deposit lodged by a contractor shall be refunded along with the payment of the final bill, if the date upto which the contractor has agreed to maintain the work in good order is over. If such date is not over, only **50%** amount of security deposit shall be refunded along with the payment of the final bill. The amount of security deposit retained by the Maharashtra Fisheries Development Corporation shall be released after expiry of period upto which the contractor has agreed to maintain the work in good order is over. In the event of the contractor failing or neglecting to complete rectification work within the period upto which the contractor has agreed to maintain the work in good order, the subject to provision of clause 17 and 20 hereof the amount of security Deposit retained by Government shall be adjusted towards the excess cost incurred

by the department on rectification work.

Clause- 2: The time allowed for carrying out the work as entered in the tender shall be strictly observed by the contractor and shall be reckoned from the date on which the order to commence work is given to contractor. The work shall through the stipulated period of the contract be proceeded with, with all due diligence (time being deemed to be the essence of the contract on the part of the contractor) and the contractor shall pay as compensation an amount equal to half per cent or of the amount of the estimated cost of the whole work as shown by the tender for every week or part thereof that the work remains uncommented, or unfinished after the proper dates. And further to ensure good progress during execution of the work, the contractor shall be bound in all cases in which the time allowed for any work exceeds one month to complete.

The contractor is Supposed to carry out the work and keep the progress. The contractor should complete the work as mentioned in the tender document

Full work shall be completed in 30 Days (Thirty) In the event of contractor failing to comply within this condition he shall be liable to pay as compensation an amount equal to half per cent of the said estimated cost of the whole work for every Week or part thereof that due quantity of work remains incomplete: Provided always that the total amount of compensation to be paid under the provisions of this clause shall not exceed 10 per cent of the estimated cost of the work as shown in the tender.

Clause 3 :- In any case in which under any clause of this contract the contractor shall have rendered himself liable to pay compensation amounting to the wholeof his security deposit (whether paid in one sum or deducted by installments) or in the case of abandonment of the work owing to serious illness or death of the contractor or any other cause, the Executive Engineer, on behalf of the Maharashtra Fisheries Development Corporation, shall have power to adopt any of the following courses as he may deem best suited to the interest of Government.

Action when whole of security deposit is forfeited

(A) To rescind the contract (for which rescission notice in writing to the contractor under the hand of Executive Engineer / or his representative shall be conclusive evidence) and in that case the Security Deposit of the contractor shall stand forfeited and be kept absolutely at the disposal of Government.

(B) To carry out the work or any part of the work departmentally debiting the contractor with the cost of the work expenditure incurred on tools and plans and charges on additional supervisory staff including the cost of work-charged establishment employed for getting unexecuted part of the work completed and crediting him with the value of the work done departmentally in all respects in the same manner and at the same rates as if it had been carried out by the contractor under the terms of his contract. The certificate of the

Executive Engineer to the costs and other allied expenses so incurred and as to the value of the work so done departmentally shall be final and conclusive against the contractor.

(C) To order that the work of the contractor be measured up and to take such part thereof as shall be unexecuted, out of his hands and to give it to another contractor to complete, in which case all expenses incurred on advertisement for fixing a new contracting agency, additional supervisory staff including the new contract agency will be debited to the contractor and at the value of the work done or executed through the new contractor shall be credited to the contractor in all respects and in the same manner and at the same rates as if it had been carried out by the contractor under the terms of his contract. The certificate of the Executive Engineer as to all the cost of the work and other expenses incurred as aforesaid for or in getting the unexecuted work done by the new contractor and as to the value of the work so done shall be final and conclusive against the contractor.

In case the contract shall be rescinded under clause (a) above the contractor shall not be entitled to recover or be paid, any sum for any work thereof actually performed by him under this contract unless and until the his Engineer-in-charge shall have certified in writing the performance of such work and the amount payable to him in respect thereof and he shall only be entitled to be paid the amount so certified. In the event of either of the courses referred to in clause (b) or (c) being adopted and the cost of the work executed departmentally or through a new contractor and other allied expenses exceeding the value of such work credited to the contractor the amount of excess shall be deducted from any money due to the contractor by Maharashtra Fisheries Development Corporation under the contract of otherwise howsoever or from his security deposit or the sale proceeds thereof provided, however that the contractor shall have no claim against Maharashtra Fisheries Development Corporation even if the certified value of the work done departmentally or through a new contractor exceeds the certified cost of such work and allied expenses, provided always that whichever of the three courses mentioned in clauses (a), (b) or (c) is adopted by the Executive Engineer the contractor shall have

no claim to

compensation for any loss sustained by him by reason of his having purchased, or procured any materials, or entered into any engagements, or made any advance on account of, or with a view of the execution of the work or the performance of the contract.

Clause 4:- If the progress of any particular portion of the work is unsatisfactory, the Executive Engineer, shall notwithstanding that the general progress of the work in accordance with the conditions mentioned in clause 2, be entitled to take action under clause 3 (b) after giving the contractor 10 day's notice in writing. The contractor will have no claim for compensation, for any loss sustained by him owing to such action.

Action when the Progress of any Particular portion of the work is unsatisfactory

Clause 5:- In any case in which any of the powers conferred upon the Executive Engineer, clauses 3 and 4 hereof shall have become exercisable and the same shall not have been exercised, the non-exercise thereof shall not constitute a waiving of any of the conditions hereof and such powers shall notwithstanding be exercisable in the event of any future case of default by the contractor for which under any clauses hereof he is declared liable to pay compensation amounting to the whole of his security deposit and the liability of the contractor for past and future compensation shall remain unaffected. In the event of the Executive Engineer taking action under sub-clause (a) or (c) of clause 3 he may, if he so desires, take possession of all or any tools, plant, materials and stores in or upon the works or the site thereof or belonging to the contractor, or procured by him and intended to be used for the execution of the work or any part thereof paying or allowing for the same in account at the contract rates, or in the case of contract rates not being applicable at current market rates, to be certified by the Executive Engineer whose certificate thereof shall be final. In this alternative, Executive Engineer, after giving notice in writing to the contractor or his clerk of the work, foreman or other authorized agent require him to remove such tools, plant, materials, or stores from the premises within a time to be specified in such notice: and in the event of the contractor failing to comply with any such requisition, the Marine Engineer & Chief Surveyor may remove them at the contractor's expense or sell them by auction or private sale on account of the contractor and at his risk in all respects, and the certificate of the Executive Engineer to the expense of any such removal and the amount of the proceeds and expense of any such ale shall be final and conclusive against the contractor.

Contractor remains liable to pay compensation if action not taken under clauses 3 & 4

Clause 6:- If the contractor shall desire an extension of the time for completion of work on the ground of his having been unavoidably hindered in its execution or on any other grounds, he shall apply in writing to the Executive Engineer before the expiration of the period stipulated in the tender or before the expiration of 30 days from the date on which he was hindered as aforesaid or on which the cause for asking for extension occurred, whichever is earlier and the Executive Engineer as the case may be if in his opinion, there were reasonable grounds for granting an extension, grant such extension as he thinks necessary or proper, the decision of the Executive Engineer in this matter shall be final.

Extension of time

Clause 7 :- On the completion of the work the contractor shall be furnished with a certificate by the Executive (hereinafter called the Executive Engineer) of such completion, but no such certificate shall be given nor shall the work be considered to be completed until the contractor shall have removed from the **premises** on which the work shall have been executed, all scaffolding, surplus materials and rubbish and shall have cleaned off after welding and gas cutting operation, wastage/scrap generated during fabrication work, or of which he may have had possession for the purpose of executing the work not until the work shall have been measured by the Engineer-in-charge or where the measurements have been taken by his subordinates until they have received approval from the Executive Engineer, the said measurements being binding and conclusive against the contractor. If the contractor shall fail to comply with the requirements of this clause as to the removal of scaffolding, surplus materials and rubbish and shall have cleaned off after welding and gas cutting operation, wastage/scrap generated during fabrication
work on or before the date fixed for the completion of the work the

Final certificate

Engineer-in-charge may at the expense of the contractor, remove such scaffolding, surplus materials and rubbish and shall have cleaned off after welding and gas cutting operation, wastage/scrap generated during fabrication work, and dispose of the same as he thinks fit and clean off such dirt as aforesaid and the contractor shall forthwith pay the amount of all expenses so incurred, but shall have no claim in respect of any such scaffolding, surplus materials and rubbish and shall have cleaned off after welding and gas cutting operation, wastage/scrap generated during fabrication work as aforesaid except for any sum actually realized by the sale thereof.

Payment on intermediate certificate to be regarded as advances.

Clause 8:- No payment shall be made for any work, estimated to cost less than rupees one thousand till after the whole of work shall have been completed and a completion certificate given. But in the case of works estimated to cost more than rupees one thousand, the contractor shall on submitting a monthly bill therefore, be entitled to receive payment proportionate to the part of the work then approved and passed by the Executive Engineer, whose certificate of such approval and passing of the sum so payable shall be final and conclusive against the contractor. All such intermediate payments shall be regarded as payments by way of advance against the final payments only and not as payments for work actually done and completed, and shall not preclude the Engineer-in-charge from requiring any bad, unsound, imperfect or unskillful work to be removed or taken away and refabricated / refitted nor shall any such payment be considered as an admission of the due performance of the contract or any part thereof in any respect or the accruing of any claim, nor shall it conclude, determine, or affect in any other way the powers of the Engineer-in-charge as to the final settlement and adjustment of the accounts or otherwise, or in any other way vary or affect the contract. The final bill shall be submitted by the contractor within one month of the date fixed for the completion of the work, otherwise the Engineer-in-charge's certificate of measurements and of the total amount payable for the work shall be final and binding
on all parties.

Payment at reduced rates

Clause 9:- The rates for several items of works estimated to cost

more than Rs. 1,000/- agreed to within shall be valid only when the item concerned is accepted as having been completed fully in accordance with the sanctioned specifications. In cases where the items of work are not accepted as so completed by the Engineer-in-Charge he may make payment on account of such items at such reduced rates as he may consider reasonable in the preparation of final or on-account bills.

on account of items of work not accepted as completed to be at the discretion of the Engineer-in-charge

Clause 10:- A bill shall be submitted by the contractor After Completion of Total works or before the date fixed by the Engineer-in-charge for all works executed in the previous month, and the Engineer-in-charge shall take or cause to be taken the requisite measurements for the purpose of having the same verified and the claim, so far as it is admissible, shall be adjusted, if possible, within ten days from the presentation of the bill. If the contractor does not submit the bill within the time fixed as aforesaid, the Executive Engineer may depute a Engineer-In-Charge or his subordinate to measure up the said work in the presence of the contractor or his duly authorized agent whose counter signature to the measurement list shall be sufficient warrant, and the Engineer- in-charge may prepare a bill from such list which shall be binding on the contractor in all respects.

Bills to be submitted monthly

Clause 11:- The Contractor shall submit all bills on the printed forms to be had on application at the office of the Executive Engineer. The charges to be made in the bills shall always be entered at the rates specified in the tender or in the case of any extra work ordered in pursuance of these conditions, and not mentioned or provided for in the tender, at the rates hereinafter provided for such work.

Bills to be on printed forms.

Clause 12:- If the specification or estimate of the work provides for the use of any special description of materials to be supplied from the store of Maharashtra Fisheries Development Corporation Department Store or if it required that the contractor shall use certain stores to be provided by the Engineer-in-charge (such material and stores and the prices to be charged therefore as hereinafter mentioned being so far as

Stores supplied by Government

practicable for the convenience of the contractor but not so as in

any way to control the meaning or effect of this contract specified in the schedule or memorandum hereto annexed) the contractor shall be supplied with such material and stores as may be required from time to time to be used by him for the purposes of contract only and the value of full quantity of the material and stores, so supplied shall be set off or deducted from any sums then due, or thereafter to become due to the contractor under the contract, or otherwise or from the security deposit or the proceeds of sale thereof, if the security deposit is held in Government securities, the same or a sufficient portion thereof shall in that case be sold for the purpose. All materials supplied to the contractor shall remain the absolute property of the Maharashtra Fisheries Development Corporation and shall on no account be removed from the site of the work, and shall at all times be open for inspection by the Engineer-in charge. Any such materials unused and in perfectly good condition at the time of completion or termination of the contract shall be returned to the Departmental stores if the Engineer-in-charge so requires by a notice in writing given under his hand, but the contractor shall not be entitled to return any such materials except with such consent of the Engineer-in-charge and he shall have no claim for compensation on account of any such material supplied to him as aforesaid but remaining unused by him or for any wastage in or damage to any such material.

Clause 12 (A) :- All stores of control materials to be supplied by the Maharashtra Fisheries Development Corporation to the contractor should be kept by the contractor under lock and key and will be accessible for inspection by the Executive Engineer at all times. control materials would be finalized after the meeting between the contractor & Executive Engineer.

Clause 13:- The contractor shall execute the whole and every part of the work in the most substantial and workmanlike manner, and both as regards materials and every other respect in strict accordance with specifications. The contractor shall also conform exactly, fully and faithfully to the designs, drawings and instructions in writing relating to the work signed by the Marine Engineer & Chief Surveyor and lodged in his office and to which the contractor shall be entitled to have access for the purpose of inspection at such office, or on the site of the work during office hours. The contractor will be entitled to receive three sets of contract drawings and working drawings as well as one certified copy of the accepted tender along with the work order free of cost, further copies of the contract drawings and working drawing if required by him, shall be supplied at the rate of **Rs. 500/-** per set of contract drawing and **Rs. 300/-** per working drawing except where otherwise specified.

Works to be executed in accordance with specifications drawing s orders etc.

Clause 14:- The Executive Engineer shall have power to make any alterations in, or additions to the original specifications drawings, designs and instructions that may appear to him to be necessary or advisable during the progress of the work, and the contractor shall be bound to carry out the work in accordance with any instruction in this connection which may be given to him in writing signed by the Executive Engineer and such alteration shall not invalidate the contract, and any additional work which the contractor may be directed to do in the manner above specified as part of the work shall be carried out by the contractor on the same conditions in all respects on which he agreed to do the main work, and at the same rates as are specified in the tender for the main work. And if the additional and altered work includes any class of work for which no rates is specified in this contract, then such class of work shall be carried out at the rates entered in the schedule of Rates of the Division prevailing at the time when the extra items crop up or at the rates mutually agreed upon between the Engineer-in-charge and the contractor, whichever are lower. If the additional or altered work, for which no rate is entered in the schedule of Rates of the Division, is ordered to be carried out before the rates are agreed upon then the contractor shall, within seven days of the date of receipt by him of the order to carry out the work, inform the Executive Engineer of the rate which it is his intention to charge for such class of work, and if the Executive Engineer does not agree to this rate he shall by notice in writing be at liberty to cancel his order to carry out such class of work and arrange to carry out in such manner as he may consider advisable, provided always that the contractor shall commence work or incur any expenditure in

Alterations in specification and designs not to invalidate contracts

Rates for works not entered in estimate or schedule of rate of the contract.

Extension of time in consequence of additions or alterations.

regard thereto before the rates shall have been determined as lastly herein before mentioned, then in such case he shall only be entitled to be paid in respect of the work carried out or expenditure incurred by him prior to the date of the determination of the rates as aforesaid according to such rate or rates as shall be fixed by the Executive Engineer. In the event of dispute, the decision of the Managing Director of the Maharashtra Fisheries Development Corporation will be final. Where, however, the work is to be executed according to the designs, drawings and specifications recommended by the contractor and accepted by the competent authority the alterations above referred to shall be within the scope of such designs drawing and specifications appended to the tender.

The time limit for the completion of the work shall be extended in the proportion that the increase in its cost occasioned by alterations or additions bears to the cost of the original contract work, and the certificate of the Engineer-in-charge as to such proportion shall be conclusive.

Clause 15 :-

No claim to any payment or compensation for alteration in or restriction of work. CAT-1268/ 593/ Dt.14/ 3/ 74

(1) If at any time after the execution of the contract documents the Executive Engineer shall for any reason whatsoever (other than default on the part of the contractor for which the Government is entitled to rescind the contract) desire that the whole or any part of the work specified in the tender should be suspended for any period or that the whole or part of the work should not be carried out at all, he shall give to the contractor a notice in writing of such desire and upon the receipt of such notice the contractor shall forthwith suspend or stop the work wholly or in part as required, after having due regard to the appropriate stage at which the work should be stopped or suspended so as not to cause any damage or injury to the work already done or endanger the safety thereof provided that the decision of the Executive Engineer as to the stage at which the work or any part of it could be or could have been safely stopped or suspended shall be final and conclusive against the contractor. The contractor shall have no claim to any payment or compensation whatsoever by reason of or
in pursuance of any notice as aforesaid, on account of any

suspension, therefore or curtailment except to the extent specified hereinafter.

(2) Where the total suspension of work ordered as aforesaid continued for a continuous period exceeding 90 days, the contractor shall be at liberty to withdraw from the contractual obligations under the contract so far as it pertains to the unexecuted part of the work by giving a 10 days prior notice in writing to the Executive Engineer, within 30 days of the expiry of the said period or 90 days, of such intention and requiring the Engineer-in-Charge to record the final measurements of the work already done and to pay final bill. Upon giving such notice the contractor shall be deemed to have been discharged from his obligation to complete the remaining unexecuted work under his contract. On receipt of such notice the Engineer shall proceed to complete the measurement and make such payment as may be finally due to the contractor within a period of 75 Days from the receipt of such notice in respect of the work already done by the contractor. Such payment shall not in any manner prejudice the right of the contractor to any further compensation under the remaining provision of this clause.

3) Where the Engineer required the contractor to suspend the work for a period in excess of 30 days at any time or 75 days in the aggregate the contractor shall be entitled to apply to the Engineer within 30 days of the resumption of work after such suspension for payment of compensation to the extent of pecuniary loss suffered by him in respect of working machinery remained idle on the site or on the account of his having had to pay the salary or wages of labour engaged by him during the said period of suspension, provided always that the contractor shall not be entitled to any claim in respect of any such working machinery, salary or wages for the first 30 days whether consecutive or in the aggregate of such suspension or in respect of any suspension whatsoever occasioned by unsatisfactory work or any other default on his part. The decision of the Executive Engineer in this regard shall be final and conclusive against the contractor.

4) In the event of any total therefore of work on notice from the Engineer under sub-clause (1) in that behalf, Withdrawal by the contractor from the contractual obligation to complete the remaining

unexecuted work under sub-clause (2) on account of continued suspension of work for a period exceeding 90 days.

OR

Curtailment in the quantity of items of items originally tendered on account of any alteration, omission or substitution in the specifications, drawings, designs, or instructions under clause 14 (1) where such curtailment exceeds 25% in quantity and the value of the quantity curtailed beyond 25% at the rates for the item specified in the tender is more than Rs.5000/-.

It shall be open to the contractor, within 75 Days from the service of (i)the notice of stoppage of work or (ii) the notice of withdrawal from the contractor obligations under the contract on account of the continued suspension of work or (iii) notice under clause 14(1) resulting in such curtailment, to produce to the Engineer satisfactory documentary evidence that he had purchased or agreed to purchase material for use in the contracted work, before receipt by him of the notice of stoppage, suspension or curtailment and require the Government to take over on payment such material at the rates determined by the Engineer, provided, however, that such rates shall in no case exceed the rates at which the same was acquired by the contractor. The Government shall thereafter take over the material so offered, provided the quantities offered, are not in excess of the requirements of the unexecuted work as specified in the accepted tender and are of quality and specifications approved by the Engineer.

No Claim to compensation on account of loss due to delay in supply of Material by Government.

Clause 15(A): - The contractor shall not be entitled to claim any compensation from Maharashtra Fisheries Development Corporation for the loss suffered by him on account of delay by Maharashtra Fisheries Development Corporation in the supply of materials entered in schedule A where such delay is caused by-

Difficulties relating to the supply of railway wagons.

Force Majeure.

Act of God.

Act of enemies of the State or any other reasonable cause beyond the control of Maharashtra Fisheries Development Corporation.

In the case of such delay in the supply of materials, Maharashtra

Fisheries Development Corporationshall grant such extension of time for the completion of the works as shall appear to the Executive Engineer to be reasonable in accordance with the circumstances of the case. The decision of the Executive Engineer as to the extension of time shall be accepted as final by the contractor.

Time limit for unforeseen claims

Clause 16:- Under no circumstances whatever shall the contractor be entitled to any compensation from Maharashtra Fisheries Development Corporation on any account unless the contractor shall have submitted claim in writing to the Engineer-in-charge within one month of the case of such claim occurring.

Clause 17:- If at any time before the security deposit or any part thereof is refunded to the contractor it shall appear to the Engineer-in-charge or his subordinate in charge of the work that any work has been executed with unsound, imperfect or unskillful workmanship or with materials of inferior quality, or that any materials or articles provided by him for the execution of the work are unsound or of a quality inferior to that contracted for , or are otherwise not in accordance with the contract, it shall be lawful for the Executive Engineer to intimate this fact in writing to the contractor and then notwithstanding the fact that the work, materials or articles complained of may have been inadvertently passed, certified and paid for, the contractor shall be bound forthwith to rectify, or remove and reconstruct the work so specified in whole or in part, as the case may require or if so required shall remove the materials or articles so specified and provide other proper and suitable materials or articles at his own charge and cost and in the event of his failing to do so within a period to be specified by the Executive Engineer in the written intimation aforesaid, the contractor shall be liable to pay compensation at the rate of one percent on the amount of the estimate for everyday not exceeding 10 days during which the failure so continues and in the case of any such failure the Engineer-in-charge may rectify or remove and re-execute the work or remove, and replace the materials or articles complained of as the case may be at the risk and expense in all respects of the contractor. Should the Engineer- in-charge consider that any such inferior work or materials as prescribed above may be accepted or made use of, it shall be within his discretion to accept the same at such reduced rates as he may fix Therefore.

Action and compensation payable in case of bad work

PWD Resolution No. CAT-1087/CR-94/Bldg-2 Dated 14/6/89

Clause 18:- All works under or in course of execution or execution in pursuance of the contract shall at all times be open to inspection and supervision of the Engineer-in-charge and his subordinates, and the contractor shall at all times during the usual working hours, and at all other times at which reasonable notice of the intention of the Engineer-in-charge and his subordinate to visit the works shall have been given to the contractor, either himself be present to receive orders and instructions, or have a responsible agent duly accredited in writing present for that purpose. Orders given to the contractor's duly authorized agent shall be considered to have the same force and effect as if they had been given to the contractor himself.

Work to be open to inspection

Contractor or responsible agent to be present

Clause 19 :-The contractor shall give not less than five days notice in writing to the Executive Engineer or his subordinate in charge of the work before covering up or otherwise placing beyond the reach of measurement any work in order that the same may be measured and correct dimensions thereof taken before the same is so covered up or placed beyond the reach of measurement and shall not cover up or place beyond the reach of measurement any work without the consent in writing of the Executive Engineer or his subordinate in charge of the work, and if any work shall be covered up or placed beyond the reach of measurement, without such notice having been given or consent obtained the same shall be uncovered at the contractor's expense, and in default thereof no payment or allowance shall be made for such work or for the materials with which the same was executed.

Notice to be given before work is covered up

Clause 20 :- If during the period of **12 months** from the date of completion as certified by the Executive Engineer pursuant to clause 7 of the contract or **12 months** after commissioning the work, whichever is earlier in the opinion of the Marine Engineer, the said work is defective in any manner whatsoever the contractor shall forthwith on receipt of notice in that behalf from the Executive Engineer, duly commence execution and completely carry out at his own cost in every respect all the work that may be necessary for rectifying and setting right

Contractor liable for damage done and for imperfections

PWD Resolution No. CAT-1087/ CR-94 / Bldg-2 dt. 14/6/89.

the defects specified therein including dismantling and reconstruction of unsafe portions strictly in accordance with and in the manner prescribed and under the supervision of the Executive Engineer.

In the event of the contractor failing or neglecting to commence execution of the said rectification work within the period prescribed Therefore in the said notice and / or to complete the same as aforesaid as required by the said notice, the Executive Engineer get the same executed departmentally or by any other agency at the risk, on account and at the cost of the contractor. The contractor shall forthwith on demand pay to the Maharashtra Fisheries Development Corporation the amount of such cost, charges and expenses sustained or incurred by the Maharashtra Fisheries Development Corporation of which the certificate of the Executive Engineer shall be final and binding on the contractor. Such costs, charges and expenses shall be deemed to be arrears of land revenue and in the event of the contractor failing or neglecting to pay the same on demand as aforesaid without prejudice to any other rights and remedies of the Government the same may be recovered from the contractor as arrears of land revenue. The Maharashtra Fisheries Development Corporation shall also be entitled to deduct the same from any amount which may then be payable or which may thereafter become payable by the Maharashtra Fisheries Development Corporation to the contractor either in respect of the said work or any other work whatsoever or from
the amount of security deposit retained by Government

Clause 21:- The contractor shall supply at his own cost all material (except such special materials, if any, as may, in accordance with the contract, to be supplied from the Departmental stores) plant, tool, appliances, implements. Ladders, scaffolding and temporary works requisite or proper for the proper execution of the work whether in the original, altered or substituted from, and whether included in the specification or other documents forming part of the contract or referred to in these condition or not and which may be necessary for the purpose of satisfying or complying with requirements of the Engineer-in-charge as to any matter as to which under these conditions he is entitled to be satisfied, or which he is entitled to require together with the carriage therefore to and from the work. The contractor shall also supply without charge the requisite number of persons with the means and from time to time of the work or the materials, necessary for the purpose of setting out any time and from time to time of the work or the materials, failing which the same may be provided by the Engineer-in-charge at the expenses of the contractor and the expenses may be deducted from any money due to the contractor under the contract or from his security deposit or the proceeds of sale thereof, or of sufficient portion thereof. The contractor shall provide all necessary fencing and lights required to protect the public from accident, and shall also be bound to bear the expenses of defense of every suit, action or other legal proceeding, that may be brought by any person for injury sustained owing to neglect of the above precautions, and to pay any damages and cost which may be awarded in any such suit, action or proceedings to any such person, or which may with the consent of the contractor be paid for compromising any claim by any such person.

Contractor to supply raw material, ladder scaffolding etc.

And is liable for damages arising from non-provisions of light fencing etc.

Clause 21 (A):-The contractor shall provide suitable scaffolds and working platforms gangways and stairways and shall comply with the following regulations in connection therewith-

a) Suitable scaffolds shall be provided for workmen for all works that cannot be safely done from a ladder or by other means.
b) A scaffold shall not be constructed, taken down or substantially altered except-
   i) Under the supervision of a competent and responsible person
   ii) As far as possible by competent workers possessing adequate experience in this kind of work.
c) All scaffolds and appliances connected therewith and all ladders shall:
   i) Be of sound material
   ii) Be of adequate strength having regard to the loads and strains to which they will be subjected, and
   iii) Be maintained in proper condition
d) Scaffolds shall be so constructed that no part thereof can

be displaced in consequence of normal use.

e) Scaffolds shall not be over-loaded and so far as practicable the load shall be evenly distributed.

f) Before installing lifting gear on scaffolds special precautions shall be taken to ensure the strength and stability of scaffolds.

g) Scaffolds shall be periodically inspected by a competent person.

h) Before allowing a scaffold to be used by his workmen the contractor shall, take steps to ensure that it complies fully with the regulations herein specified.

   1. Working platform, gangway, stairways shall- be so constructed that no part thereof can sag unduly or unequally
   2. Be so constructed and maintained, having regard to the prevailing conditions as to reduce as far as practicable risks of persons tripping.
   3. or slipping, and

i) Be kept free from any unnecessary obstruction In the case of working platform, gangways, working places and stair ways at a height exceeding 3.0 metres to be specified.

j) Every working platform and gangway shall have adequate width; and Every working platform, gangway, working place and stairway shall be suitably fenced.

k) Every opening in the floor of a building or in a working platform shall except for the time and to the extent required to allow the excess of persons or the transport or shifting of material be provided with suitable means to prevent the fall of persons or material.

l) When persons are employed on a roof where there is a danger of falling from a height exceeding 3.0 metres, suitable precautions shall be taken to prevent the fall of persons or materials.

m) Suitable precautions shall be taken to prevent persons being struck by articles which might fall from scaffolds or other working places.

n) Safe means of access shall be provided to all working platform and other working places. The contractor (s) will

have to make payments to laborers as per minimum wages Act 1948.

Clause 21 (B):- The contractor shall comply with the following regulations as regards the Hoisting Appliances to be used by him:

a) Hoisting machines and shackle including their attachments anchorage's and supports shall be of good mechanical construction, sound material and adequate strength and free from patent defect. Be kept in good repair and in good working order
b) Every rope used in hoisting or lowering materials or as a means of suspension shall be of suitable quality and adequate strength and free from patent defect.
c) Hoisting machines and shackle shall be examined and adequately tested after erection on the site and before use and be re-examined in position at intervals to be prescribed by the Government.
d) Every chain, ring, hook, shackle, swivel and pulley block used in hoisting or lowering materials or as a means of suspension shall be periodically examined.
e) Every crane driver or hoisting appliance operator shall be properly qualified.
f) No person who is below the age of 18 years shall be in control of any hoisting machine, including any scaffold, or give signals to the operator.
g) In the case of every hoisting machine and of every chain, ring, hook, shackle, swivel and pulley block used in hoisting or lowering or as a means or suspension the safe working load shall be ascertained by adequate means.
h) Every hoisting machine and all gear referred to in preceding regulation shall be plainly marked with the safe working load.
i) In the case of a hoisting machine having a variable safe working load, each safe working load and the conditions under which it is applicable, shall be clearly indicated.
j) No part of any hoisting machine or of any gear referred to in regulation (h) above shall be loaded beyond the safe working load except for the purpose to testing.
k) Motors, gearing, transmissions, electric wiring and other

dangerous parts of hoisting appliances shall be provided with efficient safeguards.

l) Hoisting appliances shall be provided with such means as will reduce to a minimum, the risk of the accidental descent of the load.

Adequate precaution shall be taken to reduce to a minimum the risk of any part of suspended load becoming accidentally displaced.

Clause 22:- The contractor shall not set fire to any standing jungle, trees, brushwood or grasses without a written permission from the Executive Engineer. When such permission is given, and also in all cases when destroying cut or dug up trees, brushwood, grass etc. by fire, the contractor shall take necessary measures to prevent such fire, the spreading to or otherwise damaging surrounding property. The contractor shall make his own arrangements for drinking water for the labour employed by him and provide sanitary and other arrangements.

Measure for prevention of fire

Clause 23 :- Compensation for all damages done intentionally or unintentionally by contractor's labour whether in or beyond the limits of the Government property including any damage caused by the spreading of fire mentioned in clause 22 shall be estimated by the Engineer-in-charge or such other officer as he may appoint and the estimate of the Engineer-in-charge subject to the decision of the **Managing Director** on appeal shall be final and the contractor shall be bound to pay the amount of the assessed compensation on demand, failing which the same will be recovered from the contractor as damage in the manner prescribed in clause 1 or deducted by the Executive Engineer from any sums that may be due or become due from Government to contractor under this contract or otherwise.

The contractor shall bear the expenses of defending any action or other legal proceeding that may be brought by any person for injury the spread sustained by him owing to neglect of precautions to prevent the spread of fire and he shall pay any damages and cost that may be awarded by the court in consequence.

Liability of contractor for any damage done in or outside work area

Clause 24:- The employment of female labours on works in

Employment of female

neighborhood of soldier's barracks should be avoided as far as possible. The contractor shall employ the labouers from the nearest Employment Exchange.	labour.
Clause 25:- No work shall be done on a Sunday without the sanction in writing from the Executive Engineer.	Work on Sunday
Clause 26:- The contract shall not be assigned or sublet without the written approval of the Executive Engineer. And if the contractor shall assign or sublet his contract, or attempt so to do, or become insolvent or commence any proceedings to get himself adjudicated and insolvent or make any composition with his creditors, or attempt so to do or if bribe, gratuity, gift, loan, perquisite, reward or advantage pecuniary or otherwise, shall either directly or indirectly be given, promised, or offered by the contractor or any of his servants or agent to any public officer or person in the employ of Maharashtra Fisheries Development Corporation in any way relating to his office or employment, or if any such officer or person shall become in any way directly or indirectly interested in the contract, the Executive Engineer thereupon by notice in writing rescind the contract, and the security deposit of the contractor shall thereupon stand forfeited and be absolutely at the disposal of Government, and the same consequences shall ensue as if the contract had been rescinded under clause 3 hereof and in addition the contractor shall not be entitled to recover or be paid for any work there of actually performed under the contract.	Work not to be sublet Contract may be rescinded and security deposit forfeited for subletting it without approval or for bribing a public officer or it contractor becomes insolvent.
Clause 27:- All sums payable by a contractor by way of compensation under any of these conditions shall be considered as a reasonable compensation to be applied to the use of Maharashtra Fisheries Development Corporation without reference to the actual loss or damages sustained, and whether any damage has or has not been sustained.	Sum payable by way of compensation to be considered as reasonable/compensation without reference to actual loss.
Clause 28:- In the case of tender by partners, any change in the constitution of firm shall be forthwith notified by the contractor to the Executive Engineer for his information.	Changes in the constitution of firm to be notified

Clause 29:- All works to be executed under the contract shall be executed under the direction and subject to the approval in all respect of the Executive Engineer of the Maharashtra Fisheries Development Corporation, for the time being, who shall be entitled to direct at what point or points and in what manner they are to be commenced, and from time to time carried on.	Direction and control of the Maharashtra Maritime Board.
Clause 30 (1):- Except where otherwise specified in the contract and subject to the powers delegated to him by Maharashtra Fisheries Development Corporation under the Code-Rules then in force, the decision of the Executive Engineer of Maharashtra Fisheries Development Corporation for the time being shall be final, conclusive and binding on all parties of the contract upon all questions relating to the meaning of the specifications, designs, drawings and instructions herein before mentioned and as to the quality of workmanship, or materials used on the work, or as to any other question, claim, right, matter or things whatsoever, in any way arising out of, or relating to the contract, designs, drawings, specifications, estimates, instructions, order or other conditions or otherwise concerning the works or the execution or failure to execute the same, whether arising during the progress of the work, or after the completion or abandonment thereof.	*Direction and control of the Maharashtra Fisheries Development Corporation*

Clause 30 (2):- The contractor may, within thirty days of receipt by him of any order passed by the Executive Engineer of the Maharashtra Fisheries Development Corporation as aforesaid, appeal against it to the Executive Engineer of Maharashtra Fisheries Development Corporation with the contract work or project provided that :

(A) The accepted value of the contract exceeds Rs. 10 lakhs. (Rupees Ten Lakhs)

(B) Amount of claim is not less than Rs. 1.00 lakhs (Rupees One Lakhs)

Clause 30 (3) :- if the contractor is not satisfied with the order passed by the Executive Engineer as aforesaid, the contractor may, within thirty days of receipt by him of any such order, appeal against it to the Managing Director , Maharashtra Fisheries Development Corporation, who if convinced that prima-facie the contractor's claim rejected by Executive Engineer Maharashtra Fisheries Development Corporation is not frivolous and that there is some substance in the claim of the contractor as would merit a detailed examination and decision by the Managing Director , shall final.

Stores of European of American manufacture to be obtained from the Government.

Clause 31:- The contractor shall obtain from Departmental stores all stores and articles of European or American manufacture which may be required for the work, or any part thereof or in making up any articles required thereof or in connection therewith unless he has obtained permission in writing from the Engineer-in-charge to obtain such stores and articles elsewhere. The value of such stores and articles as may be supplied to the contractor by the Executive Engineer will be debited to the contractor in his account at the rates shown in the schedule in form 'A' attached to the contract and if they are not entered in the said schedule, they shall be debited to him at cost price which for the purpose of this contract shall include the cost of carriage and all other expenses whatsoever, which shall have been incurred in obtaining delivery of
the same at the stores aforesaid.

Clause 32:- When the estimate on which a tender is made includes lump sums in respect of parts of the work, the contractor shall be entitled to payment in respect of the items of work involved or the part of the work in question at the same rates as are payable under this contract for each items, or if the part of the work in question is not in the opinion of the Engineer-in-charge capable of measurement, the Engineer-in charge may at his discretion pay the lump-sum amount entered in the estimate and the certificate in writing of the Engineer-in-charge shall be final and conclusive against the contractor with regard to any sum or sums payable to him under the provisions of this clause	*Lump-sum in estimates*
Clause 33:-In the case of any class of work for which there is no such specification as is mentioned in Rule 1 such work shall be carried out in accordance with the Maharashtra Fisheries Development Corporation specifications, and the event of there being no Maharashtra Fisheries Development Corporation specification, then in such case the work shall be carried out in all respects in accordance with all instructions and requirements of the Engineer-in-charge.	*Actions where no specifications.*
Clause 34:- The expression "work" or "works" where used in these conditions shall unless there be something in the subject or context repugnant to such construction, be constructed to mean the work or works contracted to be executed under or in virtue of the contract, whether temporary or permanent and whether original, altered, substituted or additional.	*Definition of work*
Clause 35:- The percentage referred to in the tender shall be deducted from/added to the gross amount of the bill before deducting the value of any stock issued.	*Contractor's percentage whether applied to net or gross amount of bill.*
Clause 36:- All quarry fees, royalties, Octroi/LBT dues and ground rent for stacking materials, if any, shall be paid by the contractor.	*Quarry fees and royalties*

Clause 37:- The contractor shall be responsible for and shall pay any compensation to his workmen payable under the workmen's Compensation Act, 1923(VIII of 1923,) (hereinafter called the said Act) for injuries caused to the workmen. If such compensation is payable/paid by Maharashtra Fisheries Development Corporation as principal under sub-section (1) of section 12 of the said Act. On behalf of the contractor, it shall be recoverable by Maharashtra Fisheries Development Corporation from the contractor under sub-section (2) of the said section such compensation shall be recovered in manner laid down in clause 1
above.

Compensation under workman's compensation Act.

Clause 37(A):- The contractor shall be responsible for and shall pay the expenses of providing medical aid to any workman who may suffer a bodily injury as a result of an accident. If Maharashtra Fisheries Development Corporation incurs such expenses the same shall be recoverable form the contractor forthwith and be deducted without prejudice to any other remedy of Maharashtra Fisheries Development Corporation from any amount due or that may become due to the contractor.

Clause 37(B):- The contractor shall provide all necessary personal safety equipment's and first aid apparatus available for the use of the persons employed on the site and shall maintain the same in condition suitable for immediate use at any time and shall comply with the following regulations in connection therewith.

a) The workers shall be required to use the equipment so provided by their contractor and the contractor shall take adequate steps to ensure proper use of equipment by those concerned.

b) When work is carried on in proximity to any place where there is a risk of drawing all necessary equipment shall be provided and kept ready for use and all necessary steps shall be taken for the prompt rescue of any person in danger.

Adequate provision shall be made for prompt first-aid treatment of all injuries likely to be sustained during the course of the work.

Clause 37(C):- The contractor shall duly comply with the provisions

of the Apprentice Act 1961" the rules made there under and the orders that may be issued from time to time under the said Act and the said Rules and on his failure or neglect to do so he shall be subject to all the liabilities and penalties provided by the said Act and said Rules. (Govt. circular No.CAT6076/3336/(400)Bldg-2/Dt. 16-8-1985)

Clause 38:-

Claim for quantities entered in the tender or estimates.

1) Quantities shown in the tender are approximate and no claim shall be entertained for quantities of work executed being either more or less than those entered in the tender or estimate.
2) Quantities in respect of the several items shown in the tender are approximate and no revision in the tendered rate shall be permitted in respect of any of the items so long as, subject to any special provision contained in the specifications prescribing a different percentage of permissible variation, the quantity of the item does not exceed the tender quantity by more than 25 percent and so long as the value of the excess quantity beyond this limit, at the rate of the item specified in the tender is not more than Rs. 5000/-

   The contractor shall if ordered in writing by the Engineer to do so, also carry out any quantities in excess of the limit mentioned above in clause (I) hereof on the same condition as and in accordance with the specifications in the tender and at the rates (i) derived from the rates entered in current schedule of rates and in the absence of such rates (ii) at the rates prevailing in the market. The said rates being increased or decreased as the case may be by the percentage which the total tendered amount bears to the estimated cost of the works as put to tender based on the schedule of rates applicable to the year in which the tenders were invited.
4) Claims arising out of reduction in the tendered quantity of any item beyond 25 percent will be governed by the provision of clause 15 only when the amount of such reduction beyond 25 per cent at the rate of the items specified in the tender rate is more than 1% of estimated cost.
5) This clause is not applicable to extra items.
6) There is not change in the rate if the excess is more than 25

percent of the tendered quantity. But the value of the excess work at the tendered rates does not exceed 1% of estimated cost.

7) The quantities to be paid at the tendered rates shall include: Tendered quantity plus 25% of tendered quantity or the excess quantity of the rate of 1% of estimated cost at tendered rate whichever is more.

Employment of famine labour etc.

Clause 39:- The contractor shall employ any famine, convict or other labour of a particular hind or class if ordered in writing to do so by the Executive Engineer.

Claim for compensation for delay in starting the work

Clause 40:- No compensation shall be allowed for any delay caused in the starting of the work on account of acquisition of land or; in the case of clearance for the works, on account of any delay in according sanction to estimates.

Claim for compensation for delay in execution of work

Clause 41:- No compensation shall be allowed for any delay in execution of the work on account of tide, non availability of material & labour.

Entering upon or commencing any portion of work.

Clause 42:- The contractor shall not enter upon or commence any portion of work except with the written authority and instructions of the Executive Engineer or his subordinate in charge of the work. Failing such authority the contractor shall have no claim to ask for measurements of or payment for work

Minimum age of persons employed, the employment of donkeys and/or other animals and the payment of fair wages

Clause 43:-

(i) No contractor shall employ any person who is under the age of 18 years.

(ii) The contractor shall pay fair and reasonable wages to the workmen employed by him, in the contract undertaken by him. In the event of any dispute arising between the contractor and his workmen on the grounds that the wages paid are not fair and reasonable, the dispute shall be referred without delay to the Executive Engineer who shall decide the same. The decision of the Executive Engineer shall be conclusive and binding on the contractor but such decision shall not in any way affect the conditions in the contract regarding the payment to be made by Maharashtra Fisheries Development Corporation at the sanctioned tender rates.

(iii) Contractor shall provide drinking water facilities to the workers. Similar amenities shall be provided to the workers engaged on

large work in urban areas.

iv) Contractor to take precaution against accidents which takes place on account of labour using loose garments while working near machinery.

vi) All facilities stipulated in the contract labour (Regulation & Abolition Act-1971, The Maharashtra Contract labour regulation & Abolition rule 1971) should be provided.

Clause 44:- Payment to contractors shall be made by Cheque or ECS, provided the amount exceeds. Rs.10/- Amount not exceeding Rs. 10 will be paid in cash.

Method of payment

Clause 45:- Any contractor who does not accept these conditions shall not be allowed to tender for works.

Acceptance of conditions compulsory before tendering for work

Clause 46:- If Government declares a state of scarcity or famine to exist in any village situated within 10 miles of the work, the contractor shall employ upon such parts of the work, as are suitable for unskilled labour, any person certified to him by the Executive Engineer, or be any person to whom the Executive Engineer may have delegated this duty in writing to be in need of relief and shall be bound to pay to such person wages not below the minimum which Government may have fixed on this behalf. Any dispute which may arise in connection with the implementation of this clause shall be decided by the Executive Engineer whose decision shall be final and binding on the contractor

Employment of scarcity labour

Clause 47:- GST shall be payable on the accepted contract value at prevailing rates separately. Contractor shall quote his rates excluding GST.

Amount of GST @ 2% i.e. 1% S.G.S.T. will be deducted at source (TDS) after the enforcement of Sections 51 of Maharashtra Goods and Services Act.2017.

~~**Clause 47 (A) :The rates quoted by the Contractor shall be rates excluding sales Tax and all other taxes but shall include GST that the contractor will have to pay for the performance of this Contract.**~~

~~***GST as per Govt. of Maharashtra Finance Department, Marathi Circular No. GST-2017***~~ **Ï.Ù.81/Ù 7Ö-ÖÖ®Ö-1Mantralaya, Mumfdcai-32, Dated. 19.08.2017.**

~~**Provisional amount of GST @2% i.e.1% C.G.S.T. + 1% S.G.S.T. will be deducted at Source (TDS) after the enforcement of Sections 51 of**~~

~~Maharashtra Goods and Services Act. 2017~~.

~~**Clause 48:-** the rates to be quoted by the contractor must be inclusive of sales Tax. No extra payment on this account will be made to the contractor.~~

Clause 49:- In case of materials that may remain surplus with the contractor from those issued for the work contracted for, the date of ascertainment of the materials being surplus will be taken as the date of sale for the purpose of sales tax will be recovered on such sale.

Clause 50:- The contractor shall employ the unskilled labourer to be employed by him on the said work only from locally available laborers and shall give preference to those persons enrolled under Maharashtra Government Employment and self-Employment Department's Scheme. Provided, however, that if the required unskilled labors are not available locally, the contractor shall in the first instance employ such number of persons as is available and thereafter may with previous permission, in writing of the Engineer-in-charge of the said work, obtain the rest of requirement of unskilled the labour from outside the above scheme.

Clause 51:- The Contractor shall pay labourers, skilled and unskilled according to prescribed wages by Minimum wages Act, 1948 applicable to the area in which work lies.

The contractor to take precautions against accidents which take place on account of labourer using loose garments while working on machinery.

Clause 52:- All amounts whatsoever which the contractor is liable to pay to the Government in connection with the execution of the work including the amount payable in respect of (I) materials and / or stores supplied/ issued hereunder by the Maharashtra Fisheries Development Corporation to the contractor (II) hire charges in respect of heavy plant, machinery and equipment given on hire, by the Maharashtra Fisheries Development Corporation to the contractor for execution by him of the work and / or on which advances have been given by the Maharashtra Fisheries Development Corporation to the contractor shall be deemed to be arrears of Land Revenue and the Maharashtra Fisheries Development Corporation may without prejudice to any other

rights and remedies of the Maharashtra

Fisheries Development Corporation recover the same from the contractor as arrears of

land revenue.

(CAT-1274.40364.Desk-2/ dt. 7-12-1976)

Clause 53:- The contractor shall duly comply with all the provisions of the contract Labour (Regulation and Abolition) Act 1970 and the Maharashtra Contract Labour (Regulation and Abolition) Rules, 1971 as amended from time to time and all other relevant statutes and statutory provisions concerning payment of wages particularly to workmen employed by the contractor and working on the site of work. In particular the contractor shall pay wages to each worker employed by him on the site of the work at the rates prescribed under the Maharashtra contract labour (Regulation and Abolition) Rules, 1971. If the contractor fails or neglects to pay wages at the said rates or makes short payment and the Maharashtra Fisheries Development Corporation makes such payment of wages in full or part thereof less paid by the contractor as the case may be the amount so paid by the Maharashtra Fisheries Development Corporation to such worker shall be deem to be an arrears of land revenues and the Maharashtra Fisheries Development Corporation shall be entitled to recover the same as such from the contractor or deduct the same from the amount payable by the Maharashtra Fisheries Development Corporation to the contractor hereunder or from any other amount payable to him by the Maharashtra Maritime

Board / Government.

Government Circular No. CAT-1284 / (120) / Bldg-2 dt. 14-8-85

Clause 54:- The contractor shall engage apprentice such as Welder, Fabricator, carpenter, Electrician, plumber as well as rigger recommended by the state Apprenticeship Advisor Director of Technical Education, Dhobi Talao, Mumbai: 400 001. In the construction work (as per Circular of the Government of Maharashtra, Education Department No. TSA/5170/T5689, Dt. 7-7-1972)

Clause 55:- (Govt. of Maharashtra PWD Resolution No. CAT-1086/CR-243/K/Bldg-32/dt. 11-8-1987)

Conditions for malaria eradication anti-malaria and other health measures

a) The anti-malaria and other health measures shall be as directed by the joint Director (Malaria and Filaria) of Health Service, Pune.

b) Contractor shall see that mosquitogenic conditions are not created so as to keep vector population to minimum level.

c) Contractor shall carry out anti malaria measures in the area as per guidelines prescribed under National Malaria Eradication Programme and as directed by the Joint Director (M & F) of Health Services, Pune.

d) In case of default in carrying out prescribed anti-malaria measures resulting in increase in malaria incidence, contractor shall be liable to pay to Government / Maharashtra Fisheries Development Corporation the amount spent by the Government on anti-malaria measures to control situation in addition to fine.

e) RELATIONS WITH PUBLIC AUTHORITIES

The contractor shall make sufficient arrangements for draining away the sewage water as well as water coming from the bathing and washing places and shall dispose off this water in such a way as not to cause any nuisance. He shall also keep the premises clean by employing sufficient number of sweepers.

The contractor shall comply with all rules, regulations, bye-laws and directions given from time to time by any local or public authority in connection with this work and shall pay fees or charges which are leviable on him without any extra cost to the Government.

(Government of Maharashtra P.W.D. Resolution No. CAT-1086/ CR-243/D-Bldg.2 dated 11.9.1987)

Clause 56:- INSURANCE OF CONTRACT WORK

Contractor shall take out necessary Insurance Policy / Policies (viz. Contractor's All Risks Insurance Policy. Erection All Risks Insurance Policy etc. as decided by the Directorate of Insurance) so as to provide adequate insurance cover for execution of the awarded contract work for total contract value and complete contract period compulsorily from the : Directorate of Insurance, Maharashtra State, Mumbai " Its postal address for correspondence is " 264, MHADA, First Floor, Opp. Kalanagar, Bandra (E), Mumbai-400 051". (Telephone Nos. 2659 0403/ 2659 0690 and Fax Nos. 2659 2461/ 2659 0403). Similarly all workmen's appointed to complete the contract work are required to be insured under workmen's compensation Insurance Policy, Insurance Policy / Policies taken out from any other Company will not be accepted. If any Contractor has effected Insurance with any Insurance Company, the same will not be accepted and the amount of premium calculated by the Government Insurance fund will be recovered directly from the amount payable to the Contractor for the executed contract work and paid to the Directorate of Insurance Fund, Maharashtra State, Mumbai. The Director of Insurance reserves the right to distribute the risks of insurance among the other insurers.

Clause: - 57 WORKERS WELFARE CESS ACT 1996:

As per building and other construction workers (Regulation of employment and condition of service) Act 1996 and The Building and others construction Worker Welfare cess Act 1996 and Government of Maharashtra GR No. BCA 2009/C.No. 108/Labour7 Adt. 17.6.2010 cess of 1% on the cost of work shall be recovered from bills payable to the contractor.

Annexure I

Maintanenance Dredging of Navigation Channel at Theronda, 2026-2027

TECHNNICAL BID

Scanned copy of the following documents in PDF format in support of the technical bid requisites has to be uploaded under Online Technical Envelope. These documents need to be digitally signed by individual contractor's digital signature and uploaded during Online Bid Submission stage. The list of documents for Technical Envelope is as follows:

Sl.	Description of the documents to be submitted	Reference	Attachments	Page Number
1	Certificate of incorporation of organization			
2	GST registration of organization		GST Number:	
3	Minimum turnover of the bidder in any year in the last 05 years (Ending 31/03/2026) should be **Rs.1.43 Cr** (FY. 2021-22,2022-23,2023-24,2024-25,2025-26) ***Form No.1 should be duly attested by Chartered Accountant.***	FORM NO 1	Year : Turnover:	
4	List of equipment Owned for the execution of project. (FORM NO 3)	FORM NO 3		
	• Backhoe Dredger - 02 Nos. **OR** • Grab Dredger - 02 Nos. **OR** • Combination of Backhoe & Grab Dredger			
	• Self-Propelled Hopper Barge with Minimum cargo carrying capacity of 350 cum- 01 Nos.			
	• Motor Tug with Minimum Engine power of 400 BHP - 01 Nos.			
5	Copy of the Work Orders and Completion Certificates for the previous experiences in having undertaken the similar kind of Work with any government agency or PSU or Private firm during last 5 (Five) years. *(*Definition of Similar works*)* *Similar works means successfully completed dredging work in Creek/Open sea condition by using suitable dredge spread.* a. At least One Work Order not less than **1.52 Cr.** b. At least Two Work Order not less than **95.61 Lakhs.** c. At least Three Work Order not less than **76.49 Lakhs.**	FORM NO 4		
6	The contractor shall submit an **AFFIDAVIT** (on Rs.100/-Stamp Paper) (As per format given on **Page No. 81**) with the name of work.	Annexure-III		
7	Work Schedule.	Appendix -R		
8	Method Statement.	Appendix - S		
9	Bid Capacity	Appendix -N		

Sign of contractor No. of Corrections Executive Engineer

Sl.	Description of the documents to be submitted	Reference	Attachments	Page Number
	(Shall be calculated by Chartered Accountant) Assessed Available Bid Capacity = (A x N x 2) – B Where, **A =** Maximum Average Annual Turnover of the bidder for the last five years (Ending 31st March 2026). from (FORM NO 1) **N =** No. of years prescribed for completion of the works for which bids are invited. **B =** Value of existing commitments and on going works to be completed during the year. (Chartered Accountant Certified Bid Capacity to be submitted)			

**** Bidders are requested to upload the documents in above mentioned series.**

Annexure II

FINANCIAL BID

Tender No:

We, the undersigned offer for Maintanenance Dredging at Theonda in accordance with **Tender No: MFDC/ENGG/01/2026-27**, Our financial proposal for executing the assignment shall be as follows:

Item No.	Description of Work	Qty.	Units	Estimated Rate (Excl of GST)	Estimated Rate in Rs. P (Excl of GST)	Total Amount In Words
1	**2**	**4**	**5**	**6**	**53**	**54**
1	Maintenance dredging at the navigation channel of Theronda, Dist. Raigad (for required dimensions), quantity to be dredged 56,000 Cum by suitable dredging equipment, to dredge a navigation channel to achieve an assured depth of 1.5 meters at the specified area, along with a slope of 1:3 and tolerance of 0.3 m as mentioned in hydrographic chart no. 2491/2026. The dredger should be capable of dredging all types of soils, including silt, marine soft/stiff clay, loose boulders, pebbles, etc., in fair weather conditions. The cost should include all lifts and leads, conveying and deposition of dredged material at the dumping area located in deep sea. This further includes all necessary arrangements of crew, fuel oil, tools, plants, equipment, machinery, and labor along with accessories, assembling, mobilizing, and demobilizing all plant and equipment required, including the cost of pre- and post-dredging surveys and monthly hydrographic surveys, complete.	56,000.00	Cubic Meter	313.56	313.56	Rupees One Crore Seventy-five Lakh Fifty-nine Thousand Three Hundred Sixty Only.
2.	Supplying and laying 100% PP Staple fibre Woven Geo bags filled with locally available sand (inital Lead of 50m) having minimum mass of 600 GSM and Tensile strength of 175 KN/M2 in MD/CD and elongation of 60/60 %. The specified Geotextile (Bags) shall have puncture resistance of 4100 N and abrasion resistance of greater than 75% of strength & thickness, to be laid as per drawing in required line, level, slope as per drawing, section in tidal condition as directed by Engineer - in - Charge. (Size of Bag 2.00 x 1.50m with inflated thickness of 40cm at Centre weight of each filled bag shall be in between 550 to 600 kilogram)	500.00	Nos	3110.00	3110.00	Rupees Fifteen Lakh Fifty-five Thousand Only
3	Providing and fixing 90 cm x 60 cm Marble plate engraving 10 cm. height letter, figures including painting the letters/figures with approved colour and shade complete	1.00	Nos	7644.00	7644.00	Rupees Seven Thousand Six Hundred Forty-four Only

Sign of contractor No. of Corrections Marine Engineer & Chief Surveyor

Total Figure	(Exclusive of GST)					

The bid validity period is for 90 days.

Signature & Seal of Tenderer
Name and Title of Signatory: Name of Firm &Address:

FORM NO 1

Maintenance Dredging of Navigation Channel at Theronda, 2026-2027

NAME OF THE BIDDER: _____

Sr No.	Fin. Year	2021-22	2022-23	2023-24	2024-25	2025-26
1.	Annual Turn Over					

Note: Kindly submit this form duly certified by the Chartered Accountant on his letter head

Seal and Signature of Chartered Accountant counter signed by Bidder

FORM NO 2

Maintenance Dredging of Navigation Channel at Theronda, 2026-2027

STATEMENT SHOWING WORK DONE IN ALL CLASS DURING LAST FIVE YEARS

NAME OF TENDERER: -

Sl. No	Name of Work	Amount put to Tender / Tendered Cost.	Agreement No.	Date of Commencement	Amount of work done during each of last Five years.					Amount of work still remaining to be executed. 2026-27	Remarks
					2021-22	2022-23	2023-24	2024-25	2025-26		
1	2	3	4	5	6	7	8	9	10	11	12

Note: This is only a standard form; details are to be furnished in this format in typewritten statements which shall be enclosed in Technical Envelop

Seal and Signature of Bidder

Sign of contractor No. of Corrections Marine Engineer & Chief Surveyor

FORM NO 3

Maintenance Dredging of Navigation Channel at Theronda, 2026-2027

List of Equipment Owned by the Bidder

Sl. No	Description of Equipment	Name Of Vessel	Registration Number /Registering Authority	Year of Built	Cargo Carrying Capacity/Bucket Capacity in Cum	Whether the equipment is owned/Hired/Chartered
1.						
2.						
3.						
4						
5						
6						
7						
8						
9						

Seal & Signature of Bidder

Sign of contractor No. of Corrections Marine Engineer & Chief Surveyor

FORM NO.4

Maintenance Dredging of Navigation Channel at Theronda, 2026-2027

DETAILS OF WORK - DREDGING WORK CARRIED OUT BY TENDERER DURING LAST FIVE YEARS

Name of the Tenderer:-

Sr. No	Name of Work	Name and Address of the organization for whom the work was done	Place and Country	Quantity Dredged in M^3	Quantity Of Geo-Bag in Nos	Date of Commencement	Tendered Cost in Lac	Total Cost of work done in Lac	Date of completion	Principle features in brief.
1	2	3	4	5	6	7	8	9	10	11

Note: This is only a standard form; details are to be furnished in this format in type written statements

Seal & Signature of Bidder

Sign of contractor No. of Corrections Marine Engineer & Chief Surveyor

Annexure -III

Affidavit (on Rs.100/- Stamp Paper)

Name of Work :-
Contactor Name:-

I ..... age.....address..... ..... (Authorized signatory to sign the contract), hereby submit, vide this affidavit in truth, that I am the owner of the contracting firm ..... / authorized signatory and I am submitting the documents in envelope no. 1 for the purpose of scrutiny of the contract. I hereby agree to the conditions mentioned below:-

1. I am liable for action under Indian Penal Code for submission of any false / fraudulent paper / information submitted in envelope no.1.

2. I am liable for action under Indian Penal Code if during contract period and defect liability period, any false information, false bill of purchases supporting proof of purchase, proof of testing submitted by my staff, subletting company or by myself, I will be liable for action under Indian Penal Code.

3. I am liable for action under Indian Penal Code if any papers are found false / fraudulent during contract period and even after the completion of contract (finalization of final bill)

(Signature of contractor)
(seal of company)

Declaration B.

I, Mr./Mrs. _____, Proprietor of _____, declare that my Company or I am Not Barred / Blacklisted / Prevented from participation in any Tender / Bidding Procedure by any government Agency in India.

NON Litigation.

I, Mr./Mrs. _____, Proprietor of _____, hereby certify that there are no pending or threatened actions of Law that will affect the dedication of Work for the Project. I further declare that, there was never /is No Litigation or charge under investigation/enquiry/trial against me/us, nor Conviction in a court of Law during last 7 years.

Name of Work :-
Contractor Name:-

(Signature of contractor)
(seal of company)

Appendix-R

Maintenance Dredging of Navigation Channel at Theronda, 2026-2027

WORK SCHEDULE

(Ref. Clause No. 7.(E)(3))

The bidder shall submit the following along-with the bid with sufficient details to enable evaluation of their grasp of the work and ability to execute it within the time of Completion.

Execution Schedule

.

1. This shall consist of a detailed Bar Chart showing in sufficient details deployment of equipment and the date and order in with the Bidder proposes to carry out different parts of the works. In preparation of the programmer appropriate allowance should be made for any loss of time due to inclement weather and other constraints mentioned elsewhere in these documents.

2. In addition, detailed technical data and the expected production rates calculated for all relevant items of the works shall be furnished for each dredger proposed to be mobilized to site in the format given

COMPANY SEAL
Signature
Name
Designation
COMPANY
Date

Appendix - S

Maintenance Dredging of Navigation Channel at Theronda, 2026-2027

METHOD STATEMENT

(To be submitted along-with the Technical bid)

The Bidder shall submit Method Statement i.e. a write up with full technical particulars indicating the method of execution of the Works (as called for in Clause No.4.(E)(3))

COMPANY SEAL

Signature :

Name :

Designation :

COMPANY :

Date :

Appendix – N

Maintenance Dredging of Navigation Channel at Theronda, 2026-2027

(UPTO THE PRECEDING MONTH OF SUBISSION OF BID)

Sr. No	Name of Work / Project	Contract Value	Date of Start as per LOI /Contract	Date of Completion as per LOI / Contract	Work done up to the preceding month of submission of bid	Value of existing commitments and on-going work to be competed (for all Clients of the Bidder) during the period of completion of work for which bids have been invited **(i.e Balance Value of Work)** **(B)**

Note : The Bidder shall also include the value of all such works which are awarded to the bidder but yet not started up to the preceding month of submission of bid .Any misrepresentation by the bidder will debar him for 2 years from MFDC work

Bid Capacity = (A x N x 2) - B = _____

Where,

A = Maximum Average Annual Turnover of the bidder for the last five years (Ending 31st March 2026). From (FORM NO 1)

N = No. of years prescribed for completion of the works for which bids are invited.

B = Value of existing commitments and on going works to be completed during the year.

(Chartered Accountant Certified Bid Capacity to be submitted)

Seal and Signature of Bidder

Sign of contractor No. of Corrections

Signature Not Verified
Digitally signed by Kishor Vinayak Salgaonkar
Date: 2026.04.21 17:15:13 IST
Location: Maharashtra-MH

Executive Engineer